

Complainant: Ash Le' Antoinette Penn (Mother)

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Child: A.D. — Al-Mira Amira Jazmine Davis

DOB: June 23, 2011

Matter: Washington County Circuit Court, Juvenile Department

Case No.: 25JU04261

Date: August 26, 2026

Submitted to:

ODHS Governor's Advocacy Office

c/o: Rosaura C. Barrett et al.

500 Summer Street NE

Salem, OR 97301

RE: Request for Administrative Investigation of Oregon Department of Human Services ("ODHS") Record Accuracy, Service Delivery, Safety-Plan Documentation, Notice, Family-Engagement and Court-Facing Practices in Case No. 25JU04261.

I. Purpose and Non-Concession

Nothing in this complaint, any exhibit, or any alternative request constitutes consent to an out-of-home safety plan; consent to warrantless, unscheduled, or undefined home entry; agreement that Mother is unsafe or unfit; waiver of objections to jurisdiction, service, notice, or procedure; or acknowledgment that the State's custody was lawfully obtained or may lawfully be continued.

Without conceding to its validity, this complaint does not challenge the juvenile court's authority or ask GAO to reverse a court order. It does not ask the Governor's Advocacy Office ("GAO") to reverse, vacate, or modify any order of the juvenile court, to decide where A.D. is placed, or to adjudicate the merits of dependency. The juvenile court decides those questions. It requests an administrative determination whether ODHS accurately documented, disclosed, and applied its asserted bases for custody, jurisdiction, safety planning, and return conditions.

Agency-Custody Records and Supplemental Materials. This complaint is intentionally organized around records that ODHS, its employees, its attorneys, its contractors, or related state offices already created, received, maintained, reviewed, relied upon, or should be able to retrieve in the ordinary course of agency operations. Those records include, as applicable, OR-Kids entries, case notes, assessments, safety analyses, Child Welfare History records, disposition notices, emails, text messages, telephone and contact logs, supervisory consultations, recordings, court-facing reports and declarations, service and placement records, provider materials, criminal-court communications, and documents supplied to or received from collateral sources.

Mother requests that GAO first investigate the complaint by obtaining and reviewing the complete agency-held record, including the underlying source materials for every challenged statement, rather than treating the absence of a duplicate attachment from Mother as an absence of the Department's own evidence. Nothing in this complaint limits Mother from providing additional documents, recordings, transcripts, sworn statements, screenshots, or other materials. Materials not within the custody or control of ODHS will be provided upon reasonable request, where available. Mother also reserves the right to supplement, amend, clarify, or expand this complaint as additional records are produced, located, or reviewed.

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II. Scope, Jurisdiction, and Why the Governor's Advocacy Office Is the Correct Forum

The State removed A.D. from Mother's care on September 6, 2025 and has maintained custody of A.D. without identifying a lawful, Mother-specific basis since. ODHS contemporaneously cited the child's alleged self-harm statement — not any conduct by Mother — as the reason for exercising emergency protective custody, then later substituted its own access, compliance, and approval demands as the basis for continued separation. This complaint does not ask ODHS to negotiate a path by which Mother earns back a right the agency never lawfully displaced.

The Governor's Advocacy Office is the correct forum. Under its published mandate, GAO addresses complaints about ODHS's role in investigating child abuse and neglect, investigates whether program staff followed ODHS policy and procedure, and responds to civil-rights and discrimination complaints through screening, coordination, oversight, and tracking.

This complaint requests written findings, evidence preservation, record correction, a founded-disposition notice audit, and misconduct and licensing referrals to the fullest extent of the law. It presents documentation of government misconduct that compels action from the appropriate overseeing bodies, internal and external, and raises deprivation-of-rights, discrimination, and retaliation concerns arising from the agency's investigation and the narrative it has since advanced. It is not an appeal.

Nor does this complaint ask GAO to referee ordinary differences in interpretation. It asks GAO to investigate objectively verifiable factual representations that ODHS employees made in both administrative and judicial settings as well as representations that ODHS adopted, failed to correct or omitted in those settings. Contemporaneous ODHS records — service records, telephone logs, emails, assessments, prior caseworker finding of no safety concerns and visitation notes — can confirm or disprove binary factual occurrences, including statements that Mother “*completed no services*,” “*refused to pick up her child*,” “*refused to plan*,” “*could not be located*,” or “*evaded service*.” The GAO is also asked to weigh the sworn statement of Mother's Mother, Marie Penn, attesting under oath that evidence presented in family reports, which was presented to, accepted by and relied on by the court, were not statements she had ever made to the agency. Perspective does not insulate a factual claim the record can test and those which sworn statements deny.

If agency witnesses reviewed the records available to them, the conflicting representations require investigation as materially false, misleading or incomplete. If they did *not* review records that the agency is themselves the custodian of before testifying under oath and submitting court-facing reports, the failure was, at minimum, reckless disregard for record accuracy in a proceeding affecting a parent's custody of her child. Either way, the agency may not dismiss the matter as a mere difference of interpretation or perspective.

II.A ODHS Omission of Known Contact Information From the Service Record

ORS §419B.815(1) provides that a juvenile court may establish jurisdiction under ORS §419B.100 only after service of a summons and a true copy of the petition in the manner prescribed by ORS §419B.812 through ORS §419B.839. ORS §419B.914 creates a narrow exception: if the child is before the court, the court may proceed without service only if diligent efforts have failed to reveal the *identity or whereabouts* of the person entitled to service.

That exception was unavailable here. ODHS and DOJ attested that Mother's location was unknown while ODHS possessed Mother's correct address, maintained active and consistent email communication with her, had regular telephone contact with Mother, received Mother's filings and was recording the location of Mother's EBT activity in real time. Mother was known, locatable, and had been directly communicating with ODHS. Her whereabouts were not unknown or un-ascertainable.

Nor did ODHS undertake genuinely diligent efforts to serve Mother as the submitted affidavits claim. The agency conceded to having used an incorrect address despite possessing Mother's correct address in its own records. After service failed at the wrong address, ODHS and DOJ did not reattempt service at the correct address; did not use the still active email channel to provide notice or pursue accepted electronic service; did not pursue alternative service; and did not provide the court a complete account of the information showing that Mother was readily locatable. ODHS failed to inform the court of an initial challenge to a referee presiding over the shelter hearing as ODHS leadership and caseworker were made a party to electronic service of that objection which required the court to schedule a second shelter hearing. The agency simply purported that Mother was non-responsive even while receiving communications from her.

In *Department of Human Services v. Southern*, the juvenile court entered a jurisdictional judgment after a hearing at which Mother was absent and had not been served with the summons and dependency petition. DHS conceded that it had failed to satisfy ORS §419B.914, and the Court of Appeals reversed the combined jurisdictional and dispositional judgment. The court agreed that failure to meet ORS §419B.914 was dispositive. *Dep't of Human Servs. v. Southern*, No. 529, slip op. at 1–2 (Or. Ct. App. Oct. 26, 2016).

The same statutory defect is present here because ODHS and DOJ invoked or relied upon ORS §419B.914 through an unknown-location narrative that their own records disproved. ODHS possessed Mother's correct address, maintained direct communication with her, and had information establishing that Mother was known, reachable, and actively engaged. Yet ODHS and DOJ omitted these material facts from the diligent-efforts materials used to support proceeding without service. Those omissions concealed the absence of ORS §419B.914's required factual predicate and prevented the court from evaluating the agency's unknown-location

representation against the record actually known to and held by ODHS. In doing so, ODHS and DOJ presented a selective account of Mother's whereabouts and communications rather than a complete and accurate record.

Part I

GAO Action

III. Administrative Correction Affecting Current Agency Decision-Making.

GAO should determine whether ODHS currently relies on inaccurate, previously adjudicated, unsupported, unpleaded, or materially misleading and incomplete assertions in the removal of A.D., formation of safety-planning, visitation, placement, service, or reunification decisions concerning A.D.. The "conditions for return" presented to Mother are not administrative conditions at all — they appear to be a workaround for an agency that removed a child but without having identified why the parent is unsafe. Upon completion and full consideration of the issues presented, GAO should direct appropriate correction of agency records, notation of dispute, preservation of the underlying record, supervisory review, and non-reliance pending review. This request asks:

- Whether Department employees complied with mandatory law, rule, and policy; and
- Whether false or materially misleading official representations were made under oath (resulting from either a reckless disregard for the truth or per se negligence in ODHS' failure to review).

GAO is the correct forum for every demand presented herein. The Office investigates complaints about the conduct of ODHS and its employees, determines whether ODHS followed its own statutes, rules, and procedures, and requires administrative correction. Four categories of relief sought here fall squarely within that function and outside the juvenile court's docket.

First, employee-conduct review:

Whether identified employees made false statements, fabricated or falsely attributed information, or omitted material contrary evidence.

Second, mandatory-process compliance:

Whether ODHS provided any disposition notices and conducted a constitutionally sufficient investigation and review of its own records that its own rules command.

Third, record integrity:

Whether ODHS must correct false entries in its electronic information system and notify every recipient of the corrected record.

Fourth, referral:

Whether the misconduct requires referral to ODHS Human Resources, ODHS of Administrative Services, the Oregon State Bar, or other professional-licensing or oversight board. A court adjudicating dependency does none of these things. GAO is in a position to do all of them.

That jurisdictional distinction—between GAO's authority to investigate employee dishonesty, failures to perform ministerial administrative duties, record-integrity violations, and the juvenile court's authority to adjudicate dependency—controls the whole complaint. The claims presented here concern verifiable conduct and record-based facts, not protected differences of professional judgment.

Part III collects the claims of **employee dishonesty** — false, fabricated, and falsely attributed statements of fact. Part IV collects the **procedural violations** — mandatory process, notice, service, documentation, and record integrity. Each claim identifies a specific non-discretionary duty, quotes or cites the governing authority, states what the record shows, and identifies the delta as a misrepresentation, a fabrication, or an omission — not a difference of interpretation. Discretion protects judgment. It does not protect a false statement of fact, a mandatory notice never sent, or a record-review duty never performed. Nor does the label "interpretation" reach a countable or record-attributable fact — a report count, a disposition, or the identity of a perpetrator; for those, the only questions are whether the employee consulted the record (negligence), omitted it (falsification), or disregarded it (recklessness).

Requested action

Reason and requested response

Written, record-specific findings	For each identified issue GAO should state whether ODHS followed all regulatory mandates; identify the records consulted to support the agency's position; and provide substantiation for each contested agency action. The response should address what the agency is currently relying on with regard to the basis for continued substitute care, what present or impending safety threat exists as to Mother which the agency claims is likely to cause A.D. serious loss or injury, court-facing representations with regard to records ODHS is the custodian of, the agency's election of service and notice history, case-planning timelines, conditions for return, and accommodation requests.
Correction or notation of dispute	Where a Department record is demonstrably inaccurate, materially incomplete, falsely attributed, or contradicted by a contemporaneous Department record, ODHS should correct it or place a clear notation of Mother's dispute in the relevant case record. The response should identify the affected entry, the source material considered, the responsible program area, and whether the entry will continue to be relied upon.
Written identification of current asserted basis	ODHS should identify the current Mother-specific threat, if any, for continuing to exclude A.D. from Mother's care: the specific safety threat, the underlying factual basis, the current evidence, and the conditions that ODHS contends must exist for safe return. This request does not concede that a valid basis exists; it seeks a direct, reviewable answer.
Case-planning and conditions-for-return determination	GAO should determine whether ODHS timely developed, documented, reviewed, and provided the case plan and conditions for return; whether stated conditions are linked to an identified Mother-specific safety threat; and whether any missed deadline, late document, or lack of notice affected Mother's meaningful opportunity to participate in reunification.
Service, notice, and default-record review	GAO should determine whether the Department's service-related and court-facing materials accurately accounted for Mother's known contact information, communications, attempted filings, and availability. If a material error or omission is found, GAO should identify the responsible office, require correction or notation of dispute, and determine whether the record should continue to be relied upon.
Accommodation determination	GAO should identify the disposition of Mother's accommodation requests, including whether each request was received, approved, denied, modified, or implemented. The response should address whether communication, case-planning, service access, and participation were offered in a manner consistent with those accommodations.
Current placement and well-being verification	Given the reported placement changes beginning in July 2026, GAO should verify A.D.'s current placement and determine whether ODHS has documented the reasons for the changes, current safety and well-being, family contact, and a plan for stable placement. This request is limited to current verification and administrative review; it does not ask GAO to make a placement order.
Appropriate supervisory or oversight referral	If GAO finds evidence that an ODHS employee made, adopted, or failed to correct a materially false, misleading, or unsupported representation, GAO should make the appropriate internal supervisory, personnel, civil-rights, professional-responsibility, or other oversight referral.
Written response and non-retaliation assurance	GAO should provide a written response identifying the finding and disposition for each issue, the corrective action taken or declined, and the responsible office. ODHS should confirm that Mother's complaint, requests for records, and accommodation requests will not be treated as noncooperation or used adversely in safety planning, visitation, service, or reunification decisions.

IV. The Central Question GAO Must Resolve

The threshold question is not what additional conditions Mother must satisfy. The threshold question is whether ODHS ever had, and now has, a documented and lawful basis to interfere with Mother's custody at all. GAO should require ODHS to identify the precise statutory, factual, and evidentiary predicate for removal and continued custody, separately as to Mother, without substituting labels such as "noncooperation," "barrier to assessment," or refusal of state entry into her home for proof of danger.

Under *Calabretta v. Floyd*, child-welfare personnel do not have a categorical exception from the Fourth Amendment's protection of the home. A child-protection purpose does not independently authorize warrantless, nonconsensual entry; the government must rely on valid and voluntary consent, a warrant or court order, exigent circumstances, or another recognized exception. *Calabretta v. Floyd*, 189 F.3d 808 (9th Cir. 1999).

Consent obtained by conditioning a parent's access to, contact with, or reunification with her child on agreement to agency-directed home entry, recurring inspection, or an undefined safety plan is coercive. The coercion is heightened where ODHS pairs its demand for entry with silence regarding the factual basis for that demand.

Where the State has already withheld a child and informs the parent that return will not occur unless the parent permits home entry, accepts recurring scheduled and unscheduled access, or signs a safety plan, the State is not merely seeking cooperation; it is conditioning reunification on consent to the intrusion itself. But ODHS may impose or maintain such a condition only after

identifying the legally sufficient predicate for exercising that authority: a specific present- or impending-danger safety threat; the Mother-specific family behavior, condition, or circumstance alleged to create that threat; the particular harm to A.D. asserted to be likely; and record-supported facts showing why the defined access is necessary to manage that threat.

Neither Mother's exercise of her right to resist state interference into her home nor an agency desire for further investigation supplies that predicate. The agency must also identify the legal authority for compelled or return-conditioned home access, the scope, frequency, and duration of the access demanded, and why less-intrusive measures would not manage the identified safety threat. Absent that showing, nonconsent cannot be recast as noncooperation, parental unavailability, or a basis for continued separation.

A parent cannot give informed, voluntary consent to an undefined intrusion when the agency will not disclose what danger it claims to be investigating, what factual basis supports that claim, who may enter, when entry may occur, how often entry may occur, what information may be collected, or why less intrusive alternatives are inadequate. ODHS cannot withhold the factual predicate for home entry, make return of the child contingent on agreement to entry anyway, and then characterize Mother's refusal to consent blindly as noncooperation, parental deficiency, or evidence of danger.

ODHS must therefore identify the lawful basis on which it claims it has the authority to demand access to Mother's home when either valid, informed, and uncoerced consent, a warrant or court order, exigent circumstances; or another recognized exception must exist. Withholding A.D. because Mother is exercising the right to resist state interference into her home. It may not characterize agreement secured under the threat of continuing separation as voluntary, while treating refusal to agree as independent evidence of noncooperation, parental deficiency, or danger. The same coercive condition cannot both supply the claimed consent and establish the alleged safety concern when Mother declines it.

The rules distinguish present danger from impending danger, but a caseworker is required to identify at least one present- or impending-danger safety threat as a condition precedent and factual predicate for further intervention or interference with a parent's constitutional right to the care, custody, and control of the child. Neither type of safety threat makes a request for access to a parent's home a substitute, if refused, for the requisite factual predicate.

Stage	Claimed or stated basis	Required ODHS explanation
Emergency custody	The September 6 communication reportedly relied on A.D.'s alleged statement of suicidal intent if returned to Mother.	Identify the statutory predicate selected; the source, timing, and reliability of the information; the decision-maker; and the facts showing why protective custody rather than a less restrictive option was necessary.
Jurisdictional allegations	The later case against Mother allegedly relied on lack of understanding and skills, inability or unwillingness to protect A.D. from Father, and criminal activity interfering with parenting.	Identify which allegations were pleaded; what evidence supported each; whether the alleged self-harm statement was included; and how each allegation created a current, nonspeculative threat of serious loss or injury.
Current return conditions	The May 2026 CF1149 requires recurring home access, acceptance of unnamed safety providers, compliance with their directives, and ODHS approval of persons who may enter the home or contact A.D.	Identify the current Mother-specific safety threat; the conduct or condition said to create it; the specific harm allegedly threatened; and why each condition is necessary and tailored to managing that threat.

Determine the Safety Threat

The definitions for the following terms are in [OAR 413-015-0115](#):

- I. "Present danger safety threat," and
- II. "Impending danger safety threat."

There is also an outline of requirements to determine the presence of either.

Present danger safety threat means an immediate, significant, and clearly observable family behavior, condition or circumstance occurring in the present tense, already endangering or threatening to endanger a *child* or, when applicable, *young adult*. The family behavior, condition, or circumstance is happening now, and it is currently in the process of actively placing a *child* or, when applicable, *young adult* in peril.

Impending danger safety threat means a family behavior, condition, or circumstance that meets all five safety threshold criteria. When it is occurring, this type of threat is not immediate, obvious, or occurring at the onset of the CPS intervention. This threat is identified and understood more fully by evaluating and understanding individual and family functioning.

Procedure

In the context of the CPS assessment, there are specific factors to consider when determining the presence of a present danger safety threat or impending danger safety threat.

- I. During the initial contact and, in general, during the CPS assessment, you must determine, based on the information obtained at that time, if there is:
 - A. A present danger safety threat, or
 - B. Impending danger safety threat.
- II. A present danger safety threat is present when the danger is:
 - A. Immediate,
 - B. Significant, and
 - C. Clearly observable.
- III. An impending danger safety threat is present when the family behaviors, conditions and circumstances result in all five of the safety threshold criteria being met.

Note: Oregon's 16 specific impending danger safety threats are listed below. These should be used to inform the presence of an impending danger safety threat.

Safety threshold criteria are used to determine the presence of an impending danger safety threat.

- I. Review all the safety related information gathered. Apply the safety threshold criteria to each identified threat in the family to determine whether a threat has crossed the threshold. All five criteria must be present for the

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impending danger safety threat to be active. You must consider these safety threshold criteria in the context of the specific impending danger safety threat:

- A. **Vulnerable child or young adult** (when applicable): Vulnerability refers to a child's capacity for self-protection. A vulnerable child is:
 1. Defenseless;
 2. Exposed to behaviors, conditions, or circumstances that they are powerless to manage; and
 3. Susceptible and accessible to a threatening parent or caregiver.Vulnerability is judged according to:
 1. Physical and emotional development;
 2. Ability to communicate needs;

Identify the Safety Threat

Threshold. For ODHS to maintain that its interference with Mother's right and ability to parent is lawful, it must identify the specific safety threat attributable to Mother. Mother contends it has not done so.

The agency's record presents evidence that ODHS may have obtained and maintained custody through materially false, materially misleading, or recklessly unverified representations concerning Mother's conduct, participation, whereabouts, and service history, while its contemporaneous records contained information inconsistent with those representations. This allegation cannot be reduced to "interpretive differences." GAO is the appropriate body to determine, through a thorough review of the record, whether agency officials acted through failure to review available records, reckless disregard of contradictory information, or knowing falsification. A generalized "difference of perspective" is not a substitute for determining what the records actually show.

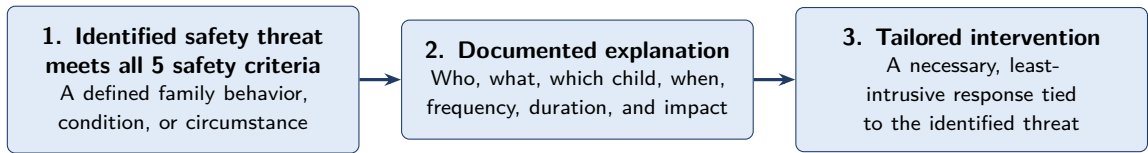
Each agency official framing Mother's inability to "move forward" as the relevant issue treats the original factual foundation of this case as irrelevant because time has passed. That response improperly collapses current return conditions into an uncorrected historical record.

The claimed historical errors remain material because they may have:

- Prevented Mother from presenting contrary evidence at the shelter hearing and jurisdictional trial;
- Allowed untested descriptions of Mother's history, service participation, conduct, and parenting capacity to become the operative agency narrative;
- Transformed assertions of "noncooperation" into purported administrative or adjudicated facts;
- Enabled later safety-plan conditions to rest on an agency-created claim that Mother could not be assessed;
- Obscured the distinction between Father-specific violence and an identified, current Mother-specific safety threat; and
- Affected the conditions ODHS now imposes as prerequisites to A.D.'s return.

The May 2026 CF1149 illustrates why historical accuracy remains material. Its Mother-specific rationale repeatedly relies on the asserted inability to assess or monitor Mother because she will not permit ODHS and unnamed "Safety Providers" into her home. It also refers to generalized reports of violence and housing instability. Yet, as described in the plan, it does not identify a dated Mother-linked violent act, a source-tested event, a specific predicted harm to A.D., or a defined mechanism by which Mother's refusal of recurring scheduled or unscheduled entry itself creates impending danger.

ODHS' rules require more than a generalized desire for access. Once an impending-danger safety threat is identified, the worker must determine how that particular threat is occurring and use that information to develop the least intrusive plan capable of managing the identified threat within the particular family. Conditions for return must describe the specific behaviors, conditions, or circumstances that must exist for safe return. The question therefore is not whether ODHS would prefer additional access. The question is whether it identified a current, Mother-linked safety threat; documented how that threat was occurring; and tailored any requested intervention to the identified threat rather than using access itself as a substitute for the factual predicate.



Impending Danger

Required Identification. The worker must identify who creates or allows the threat; what that person is doing or not doing; which child is affected; when it occurs; its frequency, duration, and contributing conditions.

Application. A CF1149 condition requiring access or “cooperation” cannot substitute for those facts. ODHS must identify Mother-specific conduct, the harm it allegedly threatens, and the evidence connecting them.

The agency has assessed Mother’s home. The agency must identify why the recent assessment completed by caseworker Emily Gonnuscio in Mother’s home is being disregarded as a safety assessment. In developing a safety plan, ODHS must understand how the identified impending-danger threat is occurring and use that information to develop the least intrusive plan capable of managing that particular threat. An ongoing safety plan is intended to control the impending-danger threats as they uniquely occur within the particular family. The child-safety decision process directs ODHS to determine how the impending danger is occurring in support of developing an ongoing safety plan.

Required sequence: Identified safety threat → documented explanation of how it occurs → tailored, least-intrusive intervention.

Department of Human Services

Child Welfare Programs - Chapter 413

Division 15
INTRODUCTION TO CPS RULES

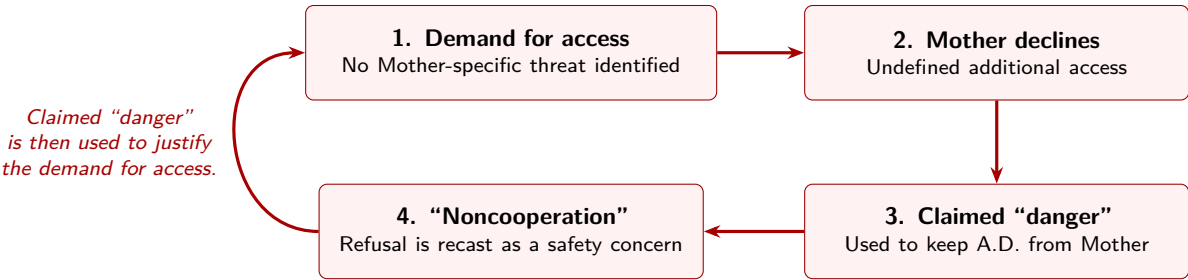
413-015-0428
Identify How the Impending Danger Safety Threat is Occurring

(1) When the CPS worker determines an impending danger safety threat is present, the CPS worker must identify how the impending danger safety threat is occurring in the family to determine the necessary level of safety intervention required to assure child safety. The CPS worker must use the information gathered to determine:

- (a) **Who.** Who is creating or allowing the threat;
- (b) **What.** What are they doing or not doing;
- (c) **To whom.** Which children are affected;
- (d) **When.** Specific times during the day or week, if any, that requires special attention due to the way the family behaviors, conditions, or circumstances are occurring;
- (e) **Precipitants or family conditions.** What contributes to the threat;
- (f) **Frequency.** How often does the precipitant, family condition, or threat occur;
- (g) **Duration.** How long has the family condition been occurring; and
- (h) **Persistent.** How pervasive is the family condition or threat.

(2) Documentation of how the impending danger safety threat is occurring. The CPS worker must document how each impending danger safety threat is occurring in the Child Welfare electronic information system.

Improper circular reasoning alleged here



Child Welfare Programs - Chapter 413

Division 15

INTRODUCTION TO CPS RULES

413-015-0425

Determine If there is a Present Danger Safety Threat or Impending Danger Safety Threat

(1) Present Danger Safety Threat. At initial contact and at any time during the CPS assessment the CPS worker must determine if a present danger safety threat is occurring. To determine there is a present danger safety threat, the CPS worker must conclude the danger is immediate, significant, and clearly observable.

(2) Impending Danger Safety Threat. Throughout the CPS assessment as new information is gathered and also at the conclusion of the CPS assessment when all information is gathered, the CPS worker must apply the following safety threshold criteria to determine if an impending danger safety threat is present. When the CPS worker concludes all the criteria apply to the family behaviors, conditions, or circumstances, an impending danger safety threat is present.

(a) **Imminent.** The family behavior, condition, or circumstance is likely to occur in the immediate to near future.

(b) **Observable.** The family behavior, condition, or circumstance is observable and can be clearly described and articulated.

(c) **Vulnerable Child.** The child's vulnerability is determined by considering the child's physical and emotional development, ability to communicate needs, mobility, size and dependence, and the child's personal characteristics in relation to the family behaviors, conditions, and circumstances.

(d) **Out of Control.** A family behavior, condition, or circumstance that can affect a child's safety is unrestrained, unmanaged, without limits or monitoring, not subject to influence or manipulation within the control of the family, resulting in an unpredictable and chaotic family environment. The CPS worker must determine whether a parent or caregiver can or cannot and will or will not protect the child from the family behavior, condition, or circumstance.

(e) **Severity.** A family behavior, condition, or circumstance is likely to result in severe harm to a child.

(3) When the CPS worker determines there is a present danger safety threat or impending danger safety threat the CPS worker must:

(a) If the CPS worker determines a child is unsafe due to a present danger safety threat, establish a protective action plan as outlined in OAR 413-015-0435, "Develop a Protective Action Plan", and continue the activities required to sufficiently complete the CPS assessment.

(b) If the CPS worker determines a child is unsafe due to an impending danger safety threat, establish:

(A) An initial safety plan as outlined in OAR 413-015-0437, "Develop an Initial Safety Plan", and continue the activities required to sufficiently complete the CPS assessment when the determination is made prior to the conclusion of the CPS assessment.

(B) When the CPS worker determines a child is unsafe due to an impending danger safety threat at the conclusion of the CPS assessment, the CPS worker must establish an ongoing safety plan as outlined in OAR 413-015-0450, "Develop an Ongoing Safety Plan."

(4) Documentation of Present Danger Safety Threats and Impending Danger Safety Threats. The CPS worker must document in the Child Welfare electronic information system the determination that a present danger safety threat or impending danger safety threat is present or not, and explain the information that supports the determination.

Statutory/Other Authority: ORS 418.005 & ORS 409.050

Statutes/Other Implemented: ORS 418.005, ORS 409.185, ORS 418.015 & ORS 419B.005 - 419B.050

Present Danger

Threshold. A present-danger safety threat must be immediate, significant, and clearly observable.

Meaning. The rule requires an actual, observable danger occurring now—not a concern that an inspection might reveal one.

Application. ODHS must identify what conduct or condition attributable to Mother presently endangers A.D. A demand to inspect Mother's home is an investigatory request; it is not the identified danger itself.

Result. The plan's only clearly particularized harm allegation is the report that Father assaulted A.D. and the related no-contact order. Yet the plan treats Father's home as meeting several safety-plan criteria because he allegedly cooperates and allows ODHS access, while treating Mother's home as noncompliant largely because she does not permit access.

The Department's own definition of the safety threshold requires that the behavior, condition, or circumstance be imminent, out of control, affecting a vulnerable child, **specific and observable**, and capable of causing severe harm — all five, conjunctively. ODHS has never identified a specific, observable behavior by Mother. Its Conditions for Return state that it is "challenging to determine if Al Mira would be exposed to violence and at risk if she were to return to Ms. Penn's home". Its supervisor acknowledged on a recorded call that "we didn't actually look at mom's parental capacity" and that "we really don't have any instances of her acting dangerously with regard to the safety of this girl". Caseworker Milne told Mother that no conduct of hers was being measured or at issue. An agency that cannot state the behavior has not established the threshold its own rule defines.

The actual sequence as demonstrated in this case begins with a demand for access and uses a parent's objection to create the danger the agency says justifies the demand.

Part II

Agency Conduct

V. Shift From the Stated Custody Basis to a Mother-Focused Compliance Theory

The record of A.D.'s removal spans nineteen minutes. ODHS reached Mother, told her A.D. would be released to her, and Mother requested her uncle's assistance to retrieve her daughter—all before the agency reversed itself and reasserted protective custody on September 6, 2025, based on an alleged statement that the child would harm herself if returned to Mother.

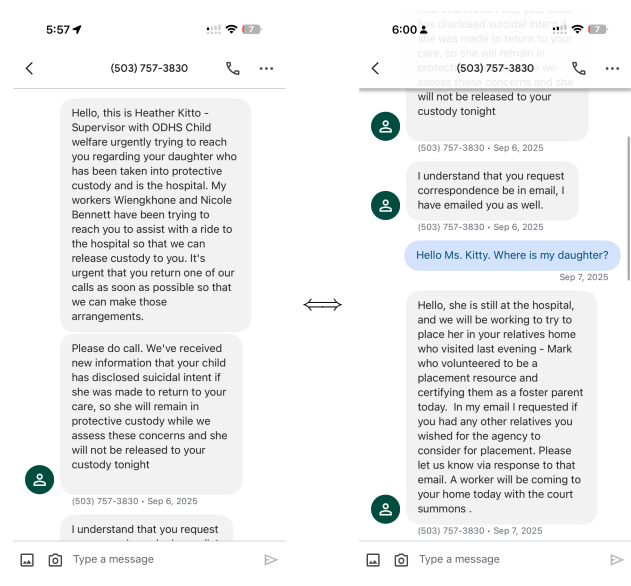
The record does not identify any conduct by Mother as the basis for that reversal. Nor was Mother assessed in the intervening nineteen minutes to support a claim that she lacks understanding of her daughter's needs, failed to protect her from Father, or is herself dangerous.

Mother exercised protective capacity immediately, seeking out her family and dispatching them to the hospital to retrieve her daughter. The agency, by contrast, arrived at its basis for emergency protective custody within twenty-nine minutes — between 5:30 and 5:59 P.M. that evening

— without conducting any assessment, consulting its own records, contacting collateral sources, or having the self-harm statement evaluated by a qualified professional. That basis has **never been tested before the court**, because the agency also cut off all contact with Mother, including by phone, without identifying what authority permitted it to do so.

The decision to exercise emergency protective custody may lie within agency discretion. What is not discretionary is candor: the agency failed to identify the true basis for that custody when it appeared before the court on Monday, September 8, 2025. On the protective-custody report it submitted, the agency did not check the box for self-harm as the basis for custody—it instead pivoted to pleading the present allegations against Mother. On Sunday, September 7, 2025, Heather Kitto spoke with Mother and did not offer the WebEx link, date, time, or place for the shelter hearing. No agency employee used any available channel of communication to notify Mother of the shelter hearing’s date, time, or place—a gap that makes any claim of reasonable or diligent notice efforts untenable.

The later safety-plan materials do not identify how Mother is dangerous or lacks capacity to understand her daughter. Instead, they rely on demands for home access and cooperation, invoking generalized reports, mischaracterized historical records, and unresolved concerns. The question for the Office is whether ODHS substituted an access-and-compliance theory for a documented, Mother-specific safety basis that remains undisclosed to Mother.



VI. Discontinuity Between Emergency Custody, Jurisdictional Allegations, and Current Return

ODHS should identify the distinct factual and legal basis it relied upon at each stage of this matter rather than treating those stages as interchangeable. The contemporaneous September 6, 2025 communication reportedly stated that A.D. would remain in protective custody because she had disclosed suicidal intent if returned to Mother’s care. The record further indicates that the later jurisdictional case against Mother proceeded on different allegations: alleged lack of understanding and skills; alleged inability or unwillingness to protect A.D. from Father; and alleged criminal activity interfering with parenting. The alleged self-harm statement was not pleaded as a jurisdictional allegation.

ODHS should therefore distinguish: (1) the statutory basis it relied upon for emergency protective custody on September 6; (2) the allegations actually pleaded and proven to establish jurisdiction; and (3) the present facts it contends prevent A.D.’s safe return to Mother. ORS 419B.150 authorizes protective custody without a court order only upon reasonable cause to believe that a child faces an imminent threat of severe harm, poses such a threat to self or others, or will be placed beyond the court’s reach before an order can be obtained.¹

The May 2026 CF1149 does not resolve this discontinuity. Although it identifies a particular event concerning Father—an alleged assault and a related no-contact order—the conditions directed at Mother principally require recurring scheduled and unscheduled home access; access for unnamed safety providers; willingness to follow provider directives; and ODHS approval before persons may enter Mother’s home or contact A.D. The plan also refers to unspecified reports of violence while acknowledging that the assessment remained ongoing and that the agency found it challenging to determine whether A.D. would be exposed to violence if returned.

The Department’s stated rationale does not identify a constitutionally recognized basis for compelled entry. ODHS has described home access as necessary to determine whether Mother is an “available” parent. But availability is not itself a present-danger safety threat; it is not exigency; and it is not probable cause. Nothing identified in the record establishes an immediate danger that entry into Mother’s home would resolve. The resulting logic is circular: Mother is asked to waive a constitutional protection; her refusal is recorded as noncooperation or unavailability; and that characterization is then used to maintain separation from her child.

GAO should determine:

1. What specific present or impending-danger safety threat, attributable to Mother and identified in contemporaneous records, was the home-access requirement intended to address.
2. Whether any ODHS report, safety plan, case note, court-facing filing, testimony, or other agency record characterizes Mother’s refusal to admit a caseworker as evidence of danger, noncooperation, parental unavailability, or a basis for continued out-of-home placement.
3. Whether ODHS identified consent, exigent circumstances, a warrant, a court order, or any other asserted legal authority for required entry into Mother’s home; and, for each asserted basis, the facts and records on which ODHS relies.

¹Or. Rev. Stat. §419B.150, https://oregon.public.law/statutes/ors_419b.150 (accessed Aug. 19, 2026).

- Whether ODHS trains, instructs, supervises, or permits staff to treat a parent's refusal to consent to home entry as a basis for continued substitute care, delayed return, adverse safety findings, or conditions imposed on a parent.
- If ODHS cannot identify a documented, Mother-specific safety threat and a lawful basis for the access condition, whether the condition should be withdrawn and excluded from any determination regarding Mother's fitness, cooperation, availability, or A.D.'s return home.

Serious Loss Reasonably Likely To Be Realized

Under ORS 419B.100(1)(c), the juvenile court has “exclusive original jurisdiction” over a child whose “condition or circumstances are such as to endanger the welfare of the child.” *Dept. of Human Services v. A. F.*, 243 Or App 379, 385, 259 P3d 957 (2011) (internal quotation marks omitted). To establish a jurisdictional basis, the Oregon Department of Human Services (ODHS) must prove by a preponderance of evidence that a child's welfare is endangered because, under the “totality of the circumstances,” there is a current threat of serious loss or injury to the child that is reasonably likely to be realized. *Dept. of Human Services v. K. C. F.*, 282 Or App 12, 19, 383 P3d 931 (2016). **ODHS has the burden of demonstrating a connection between the parent's conduct and the threatened harm to the child.** *Dept. of Human*

A parent's home is the paradigm case for Fourth Amendment protection. In *Calabretta v. Floyd*, the Ninth Circuit held that a social worker and police officer violated the Fourth Amendment when they made a coerced, warrantless entry into a family home to investigate suspected child abuse, interrogate a child, and conduct a strip search—all “without a search warrant and without a special exigency.” 189 F.3d 808, 811, 819–20 (9th Cir. 1999). The defendants argued that an entry undertaken to investigate child abuse required neither a warrant nor exigent circumstances. The court rejected that proposition, explaining that the ordinary Fourth Amendment requirements apply and that there is no categorical “social-worker exception” to the warrant requirement.

The constitutional logic is straightforward: an agency cannot manufacture the predicate for an intrusion from the citizen's insistence that the predicate be shown first. Oregon has likewise recognized that a person's invocation of a constitutional protection generally may not be used as substantive evidence of guilt. See *State v. Banks*, 364 Or. 332 (2019). A parent may have personal and constitutionally protected reasons for declining a government search of the home. The refusal itself does not establish danger, exigency, probable cause, neglect, or parental unavailability.

Cite as 347 Or App 736 (2026)

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Services v. L. E. F., 307 Or App 254, 258, 476 P3d 119 (2020),
rev den, 367 Or 559 (2021).

ODHS has not identified a judicial order authorizing entry into Mother's home. Nor has it stated facts that would support an application for a warrant, an emergency order, or another recognized exception to the warrant requirement. ODHS has been advised in writing of these constitutional concerns. On April 13, 2010, Oregon Legislative Counsel issued Written Findings of Negative Determination, ARR 1201, concluding under ORS §183.720(3) that former temporary OAR 413-015-0420 “raises constitutional issues.” Legislative Counsel specifically concluded that, under the then-controlling Ninth Circuit decision in *Greene v. Camreta*, a nonexigent child-abuse investigation involving an interview required a warrant, court order, parental consent, or exigent circumstances. Although the Supreme Court later vacated the *Greene* judgment on mootness grounds, and the Ninth Circuit's school-interview holding therefore lacks binding precedential force, the Legislative Counsel finding remains material notice that ODHS's initial-contact practices implicated Fourth Amendment protections.

Issue	Record position asserted by Mother	Why GAO review is required
Protective-Custody Grounds	The stated reason for the September 6, 2025 reversal was the child's alleged self-harm disclosure, not a specified action or omission by Mother.	Determine whether ODHS later relied on a different, unpleaded, or unsupported theory to justify keeping A.D. from Mother.
Safety-plan Theory	The safety plan treats lack of home access and alleged unwillingness to cooperate as the recurring basis for conditions directed at Mother.	Determine whether access demands were substituted for an identified safety threat attributable to Mother.
Ongoing Assessment	The safety plan refers to reports still being assessed while simultaneously using uncertainty as a barrier to return.	Determine whether ODHS used unverified or incomplete information to maintain custody.
Mother-specific safety finding	Mother contends ODHS has not identified current, nonspeculative conduct by Mother that endangered A.D.	Require a direct, record-supported answer rather than a label, assumption, or demand for compliance.

VII. ODHS May Not Substitute an Access Demand for a Mother-Specific Jurisdictional Basis

ORS §419B.343 requires ODHS to ensure that reunification case planning bears a rational relationship to the jurisdictional findings and includes appropriate services directed to the parents circumstances, conduct, or conditions that must change to permit safe return. ODHS may not use case planning to create a new, unpleaded, or undefined basis for continued separation.

The May 6, 2026 CF1149 identifies Fathers alleged assault of A.D. and the resulting no-contact order as the particularized danger event. With respect to Mother, however, the CF1149 does not identify a particular act, omission, condition, or circumstance by Mother that creates a current threat of serious harm to A.D. It instead repeatedly identifies Mothers refusal to allow ODHS, CPS, permanency workers, or unspecified Safety Providers into her home as the asserted obstacle to reunification.

That is not the same as identifying a Mother-specific jurisdictional condition. If ODHS asserts that Mothers conduct presently places A.D. at risk, ODHS must identify the conduct, the evidence supporting it, the resulting threatened harm, and the nexus between the two. Oregon

dependency law requires a current threat of serious loss or injury that is reasonably likely to be realized; it does not permit jurisdiction or continued coercive intervention based on speculative risk or an evidentiary void.²

Nor may ODHS treat compelled scheduled and unscheduled home access, undefined provider commands, or a generalized demand for cooperation as a service rationally related to the jurisdictional findings unless it first identifies the particular jurisdictional finding and explains the factual and logical connection. The Oregon Court of Appeals has held that a required service must bear a rational relationship to the actual jurisdictional bases; a service cannot be imposed merely because the agency considers it generally useful.³

Mother therefore does not request additional services, and does not concede that she must complete services or accept safety-plan conditions. Mother requests written administrative findings identifying the exact Mother-specific jurisdictional condition ODHS contends remains unresolved, the evidence establishing it, the current threatened harm to A.D., and the legally rational connection between that condition and each demand ODHS has imposed.

VIII. CF1149: Compliance Demands Without an Identified Mother-Specific Danger

The CF1149 and related safety-plan materials are offered as evidence of the Department's stated position, not as a concession that their terms are valid. As to Mother, the plan emphasizes home access, willingness to cooperate, general reports still under assessment, and contingencies relating to housing and warrants. The plan does not identify a specific act by Mother that harmed or endangered A.D., the particular serious loss or injury that the demanded conditions would prevent, or the nexus between the two.

A generalized conclusion that the matter reflects "interpretation," "perspective," or "professional judgment" does not answer the questions:

IX. Governing Standards (Stated Once; Applied Throughout)

The following authorities govern the claims below. Each is stated once here and applied by reference. Verified citations and links appear in Appendix A.

A caseworkers internal procedural duty to assess safety before returning a child is not, by itself, authority to compel a particular parent to submit to a home inspection. The rules found in the agency's manual framing the agency's obligations in terms of what they must achieve serves to inform the worker what to do once an identified safety threat and return-safety process exist; it does not eliminate the threshold requirement for an identified, parent-linked safety threat or the evidentiary standard for court intervention. ODHS's own conditions for return rule requires a written statement of the specific behaviors, conditions, or circumstances that must exist before an in-home safety plan may be developed.

A mandatory agency procedure cannot manufacture the factual predicate that authorizes its use.

The agency may say: Before we return a child under an in-home safety plan, the caseworker must complete certain assessment activities. But the resulting question is still: *What identified, Mother-specific safety threat requires this assessment, what harm is the assessment intended to prevent, and what evidence connects that threat to Mother rather than to Father or to an undefined possibility of harm?*

Protective custody requires a specific statutory predicate, not general authority. Once a parent objects, general child-welfare authority does not authorize ODHS to take charge of a child: "Nothing in ORS §418.005 shall be construed as authorizing any state official, agent or representative . . . to take charge of any child over the objection of either of the parents."⁴ Protective custody without a court order is authorized "only when there is reasonable cause to believe" one of three predicates exists: an imminent threat of severe harm to the child; that the *child* poses an imminent threat of severe harm to self or others; or imminent flight beyond the court's reach.⁵ "Reasonable cause" means "a subjectively and objectively reasonable belief, given all of the circumstances and based on specific and articulable facts."⁶ The person taking custody must apply for an order by a declaration setting forth "with particularity" why custody is necessary and "the least restrictive means available."⁷

Developing a Required Safety Plan

Once ODHS declines to release, it must proceed without unnecessary delay and notify the court.⁸

The shelter hearing is an independent evidentiary checkpoint. A parent must be given the opportunity to present evidence that the child can be returned home without further danger.⁹ The court must make written findings on whether ODHS made reasonable

²*Department of Human Services v. S. R. L.*

³*Department of Human Services v. K. J.*

⁴ORS §418.010 (record-cited; confirm against the current Oregon Revised Statutes).

⁵ORS 419B.150(4)(a).

⁶ORS 419B.150(1)(b).

⁷ORS 419B.150(5).

⁸ORS §419B.168(1).

⁹ORS §419B.185(1).

efforts “to prevent or eliminate the need for removal” and “to make it possible for the child . . . to safely return home,” and “shall consider whether the provision of reasonable services can prevent or eliminate the need to separate the family.”¹⁰ To support those findings, “ODHS shall present written documentation” of the efforts made.¹¹

Dependency jurisdiction requires a current threat, proven by a preponderance — not old allegations. The court’s jurisdiction rests on conditions or circumstances that endanger the child’s welfare.¹² Conditions or circumstances endanger a child’s welfare where, under the totality of the circumstances, the court finds a reasonable likelihood the child will be harmed.¹³ The threat must be current: where jurisdiction rests solely on a parent’s substance abuse and the record is legally insufficient to show a problem at the time of the jurisdictional hearing, there is no current risk of harm.¹⁴

The CPS assessment must review the Department’s own records. A CPS worker must review records and use them to identify information regarding abuse, family supports, and protective capacity, must address relevant unassessed allegations, and must contact collateral sources that clarify or supplement the referral and the records reviewed.¹⁵ A “present danger” safety threat must be immediate, significant, and clearly observable.¹⁶

A disposition, not a narrative, establishes what ODHS found. A CPS assessment concludes in one of three dispositions — founded, unfounded, or unable to determine — under the applicable standard of proof.¹⁷ A report is not a disposition; a call count is not a finding.

Mandatory notice of every disposition, and of any founded disposition, is required. At the conclusion of a CPS assessment the worker must notify the parent of all dispositions and whether services will be provided; when the parent is named as the perpetrator of a founded disposition, ODHS must provide *written* notice and the review process.¹⁸ That written notice is the “Notice of a CPS Founded Disposition” (Form CF 313), delivered by certified mail, restricted delivery, or by hand.¹⁹ Any exception requires documented supervisory or management authorization.

ODHS must document safety determinations contemporaneously.²⁰

Investigatory authority is not entry authority. Department authority to investigate a claim of child abuse does not allow warrantless entry into a residence.²¹ A demand for “direct access” cannot substitute for a lawful, particularized basis.

Employees must comply with law, rule, and policy. “As keepers of the public trust, staff have a responsibility to comply with state and agency policies, administrative rule, and state and federal law . . . Individuals who fail to comply . . . may face progressive discipline, up to and including dismissal from state service.”²²

Parental rights are fundamental and may not be diluted by administrative convenience. A parent has a fundamental liberty interest in the care, custody, and upbringing of his or her child protected by the Fourteenth Amendment. *Troxel v. Granville*, 530 U.S. 57, 65–66 (2000). That right “does not evaporate simply because they have not been model parents or have lost temporary custody of their child to the State.” *Santosky v. Kramer*, 455 U.S. 745, 746 (1982). Oregon law expressly requires that the provisions of ORS chapter 419B “be construed and applied in compliance with federal constitutional limitations on state action.” ORS §419B.090(4). The due-process rights of parents are therefore “always implicated in the construction and application of the provisions of ORS chapter 419B.” *Dept. of Human Services v. J.R.F.*, 351 Or 570, 579, 273 P3d 87 (2012). Fundamental fairness requires that a parent be able to participate in a meaningful manner and be heard. *Dept. of Human Services v. D.J.*, 259 Or App 638, 643–44, 314 P3d 998 (2013).

The State bears the burden to prove a current, nonspeculative threat connected to parental conduct. Under ORS §419B.100(1)(c), jurisdiction rests on conditions or circumstances that “endanger the welfare of the child.” ODHS must prove “by a preponderance of evidence” a current threat of serious loss or injury “reasonably likely to be realized,” and must demonstrate “a connection between the parent’s conduct and the threatened harm to the child.” *Dept. of Human Services v. K.C.F.*, 282 Or App 12, 19, 383 P3d 931 (2016); *Dept. of Human Services v. L.E.F.*, 307 Or App 254, 258, 476 P3d 119 (2020).

¹⁰ ORS 419B.185(3).

¹¹ ORS 419B.185(4).

¹² ORS §419B.100(1)(c).

¹³ *State ex rel Juv. Dept. v. Smith*, 316 Or 646, 853 P2d 282 (1993).

¹⁴ *Dept. of Human Services v. E.M.*, 264 Or App 76, 331 P3d 1054 (2014); accord *Dept. of Human Services v. C.W.*, 305 Or App 75, 468 P3d 1024 (2020).

¹⁵ OAR 413-015-0415 (rule confirmed; subsection language record-cited).

¹⁶ OAR 413-015-0425; ODHS Child Welfare Procedure Manual, Safety chapter (record-cited).

¹⁷ OAR 413-015-1010; see OAR 413-015-1005.

¹⁸ OAR 413-015-0470(1)(b)–(c).

¹⁹ OAR 413-010-0715(1); review pathway at OAR 413-010-0700 to 413-010-0750.

²⁰ OAR 413-080-0051 (record-cited; confirm subsection).

²¹ *State v. Weaver*, 214 Or App 633, 168 P3d 273 (2007); *opinion*.

²² ODHS|OHA Policy 100-012 (record-cited). The DAS Chief Human Resources Office (CHRO) investigates state-employee misconduct under labels including Failure to Meet Expectations (Dishonesty; Duty to Report; Falsified Documents/records; Manager — Higher standard), Maintaining a Professional Workplace (Dishonesty; Falsified Documents), Managing Improper Governmental Conduct (Abuse of Authority), Mismanagement, and Retaliation, and returns a finding of Sustained/Substantiated, Not Sustained, Conduct Within Policy, or Insufficient Information (chro.investigations@das.oregon.gov).

Oregon’s policy places the needs of the family as the paramount concern. “[T]he scientific studies, as well as the philosophical and constitutional predisposition of Oregon, require that the needs of the family be the paramount concern of the state—and, therefore, the courts—in dependency matters.” This statutory orientation requires that interference with the parent-child relationship be minimized and justified by particularized evidence, not by generalized assessments or administrative preference.

Service must be reasonably calculated to afford actual notice and meaningful opportunity to appear. Service of the summons and petition must be accomplished “in a manner reasonably calculated under all the circumstances to apprise the person served of the existence and pendency of the juvenile proceeding and to afford the person a reasonable opportunity to appear.” ORS §419B.823; accord *Mullane v. Cent. Hanover Bank & Trust Co.*, 339 U.S. 306, 314 (1950). The methods enumerated in ORS 419B.823 and ORS 419B.824 are not exclusive, but any method used must satisfy due process. *Dept. of Human Services v. K.L.*, 272 Or App 216, 222–23, 355 P3d 926 (2015). Proof of service by hand delivery must indicate that the server “reasonably believes that the person served is the identical one named in the summons.” ORS 419B.833(1)(a). Where service is constitutionally inadequate, the resulting judgment is voidable. *Dept. of Human Services v. C.M.R.*, 281 Or App 886, 887, 383 P3d 985 (2016) (per curiam) (reversing jurisdictional judgment entered in mother’s absence due to deficient service).

The petition must allege ultimate facts with sufficient specificity to permit preparation of a defense. “[T]o plead ‘ultimate facts,’ a party must plead a ‘fairly specific description of facts’ and may not simply plead a theory of recovery that might later be supported by ‘any state of facts.’” *Davis v. Tyee Indus., Inc.*, 295 Or 467, 476, 668 P2d 1186 (1983). The allegations must be “sufficiently clear that a person of average intelligence would understand what is intended by them in order to prepare a defense.” *State ex rel. Juv. Dep’t v. Goebel*, 26 Or App 251, 254, 552 P2d 281 (1976). A petition alleging only that a child made statements of abuse, without more, is insufficient to establish jurisdiction. *Matter of Boyce*, 47 Or App 759, 764, 615 P2d 385 (1980); *Matter of Rise*, 54 Or App 725, 728, 635 P2d 1369 (1981).

Services ordered must bear a rational relationship to the jurisdictional findings. Case planning and services must “[bear] a rational relationship to the jurisdictional findings that brought the child within the court’s jurisdiction.” ORS §419B.343(1)(a). The court has authority to order a particular service only if it is rationally related to the jurisdictional bases. *State ex rel. Juv. Dep’t v. G.L.*, 220 Or App 216, 223, 185 P3d 483 (2008).

Part II

Oversight

X. Material Misrepresentations, False Attributions, and Record Integrity Failures

Each claim in this Part identifies a statement of fact that is false, fabricated, or falsely attributed when measured against the Department’s own records. These are not interpretive judgments protected by discretion.

I X.A The Self-Harm Basis Communicated at 5:59 P.M. Was Replaced With an Unassessed Parental-Danger Theory.

Rule. Emergency custody predicated on a child’s self-harm risk²³ is a distinct evidentiary chain from custody predicated on parent-created danger;²⁴ each requires its own specific and articulable facts.

Record. At 5:40 p.m. on September 6, 2025, ODHS told Mother it could release A.D. to her. At 5:59 p.m., ODHS reversed release of A.D. based on an attributed statement that A.D. would harm herself if returned to Mother. The protective-custody form presented to the court two days later did not check the statutory option corresponding to self-harm; ODHS instead advanced a theory that Mother lacked the capacity to understand the needs of her child, failed to protect her and was, herself, a danger to her child. The attributed statement had been denied entirely by A.D., and ODHS knew of the recantation *before* the shelter hearing.

The Department’s own prior Child Safety Decision with regard to Mother’s home, made after a two-hour interview in her home with caseworker Emily Gonnuscio and all three of Mother’s children (evidencing Mother’s cooperation) where an assessment found A.D. “Safe” and recorded that “AshLe’ is able to intervene when needed” was entirely omitted from the testimony presented by caseworker Marquand.

Marquand proceeded to testify that the only attempt at self-harm committed by A.D. **predated** September 6 and that the attribution to Mother as the sole basis for the agency’s exercise of emergency protective custody rested on the child’s conditional statement

²³ORS §419B.150(4)(a)(B).

²⁴ORS 419B.150(4)(a)(A).

while also stating that A.D. (while not in her Mother's care) had still attempted suicide while living at her father's home and entirely unrelated to Mother:

"... the child had attempted to commit suicide a few days prior with a knife but refused to have her wrist and arms checked for injuries. The child noted that ... she wouldn't attempt suicide if she went home with her dad but would attempt suicide if she went home with her mom. The hospital social worker informed the agency that because of these ideations that the child would be held overnight and have a full evaluation the morning of..." (Tr. 00:05:42–00:06:10, Marquand.)

The agency's own witness then confirmed the recantation ODHS held before the shelter hearing:

"The hospital social worker later informed the agency that the mother did talk with the child while at the hospital ... which led to the child then recanting these ... statements and saying that everybody was lying about what she had said related to the self-harming..." (Tr. 00:06:18–00:06:49, Marquand.)

ODHS recast that recantation as coaching (addressed in the coaching claim, Part III) and did not fairly present it to the shelter court (Part IV).

Child Safety Decision:		
Child	DOB	Child Safety Decision
[REDACTED]	[REDACTED]	Safe
Almira A. Davis	06/23/2011	Safe
Basis for Child Safety Decision: Safety threats 2 and 3 were considered for this assessment and is not met as both children are living outside the home with their mother. Al-Mira chooses to live at her dad's house of her own choice, AshLe' is able to intervene when needed.		

Figure 1. ODHS Child Safety Decision for this assessment: A.D. found "Safe"; the Department's own basis states that "A.D. chooses to live at her dad's house of her own choice, AshLe' is able to intervene when needed." (Complainant's screenshot of the ODHS record.)

Δ (Fabrication / Omission). The agency failed to document any contemporaneous assessment specifying the type, duration and nature of the specific risk-causing conduct by Mother which would support the parent-danger theory ODHS substituted after reversing its decision to release to mother in nineteen minutes and without being able to identify the specific conduct by Mother that permitted the agency to assert itself between A.D. and her Mother's right to the care, custody and control of her minor daughter. The Department's own safety decision contradicts that theory. The witness placed the attempt "a few days prior" — before the events of September 6 and before any contact by Mother that day — which identifies the operative predicate as the child's self-harm under ORS §419B.150(4)(a)(B), not parent-created danger under (4)(a)(A), and cannot be reconciled with the Department's contemporaneous "Safe" child-safety decision. By the Department's own Child Safety Decision, A.D. was living in her father's home in the days before September 6; the only completed self-harm act the witness describes therefore occurred outside Mother's care. A finding of danger and a claimed inability to assess are mutually exclusive. "Inability to assess is the absence of evidence, not evidence of risk" and the onus is not on Mother to demonstrate the absence of nothing.

ODHS was required to identify and prove: (1) the nature and duration of the allegedly risk-causing parental conduct or condition; (2) the specific serious loss or injury to A.D. that ODHS claimed it was preventing; (3) the effect of that conduct or condition on A.D.; and (4) a nexus establishing that the identified harm was a current, nonspeculative threat reasonably likely to be realized absent court intervention.

The prospective risk ODHS attributed to Mother rested on the child's conditional statement — "would attempt suicide if she went home with her mom" — which was later recanted. Converting a disputed, later-recanted child self-harm statement into a maternal-danger finding, without the intervening assessment and without being able to identify, still, the parental conduct that supports the allegations that Mother lacks capacity to understand and is herself a current, severe threat to A.D. likely to be realized, is a theory manufactured to fit the relief sought.

The Department's subsequent justification for continued separation has shifted to grounds never pleaded in the dependency petition. At the October 31, 2025 jurisdictional hearing, ODHS did not plead substance use as a basis for jurisdiction over A.D.; did not plead the existence of Mother's warrants as a jurisdictional allegation; and did not plead an "open assessment" regarding Complainant's son as a predicate for A.D.'s removal. Yet in the months following the default judgment, caseworker David Milne repeatedly represented to Mother that an "open assessment" concerning an allegation that her son was spanked with a belt barred A.D.'s return, and ODHS has continued to cite Mother's warrants and substance-use "concerns"—conceded under oath to be unassessed—as substantive barriers to reunification. A party that obtains jurisdiction on one theory may not maintain custody on unstated theories developed after the

judgment. Each post-judgment ground is an independent departure from the pleaded case and from the record ODHS presented to secure the default. The agency has, as of the submission of this complaint, failed to assert the parental conduct at issue that prevents A.D.'s return and claims that Mother's exercise of her Fourth Amendment right is the barrier to that return so long as Mother will not accept a safety plan that violates her disability and authorizes access to her home at any time by the agency and its partners. The exercise of the right to maintain the autonomy of one's home, in the absence of any specific allegation of parental misconduct or deficit cannot be transmuted into an allegation of danger.

Complainant contemporaneously summarized the bait-and-switch in her recorded call with replacement caseworker Jermany: "

You all took my daughter because you said that she made a statement of self harm on September 6th . . . And instead of a statement of self harm, that was the basis for exercising emergency protective custody. You told the court that I'm dangerous, lack the capacity to parent or understand her, and that I failed to protect her from her father."²⁵

That contemporaneous statement, made to several caseworkers from the inception of this case on recorded calls all taking place before this complaint was drafted, independently tracks the exact substitution documented in the shelter and jurisdictional records. The agency refuses to address this issue by claiming it was awarded jurisdiction of the child - but the documentary record raises substantial grounds to investigate whether ODHS personnel knowingly, recklessly, or negligently made false, materially misleading, or materially incomplete representations that affected the jurisdictional process.

| X.B The Sworn Statement That Mother "Did Not Engage in Any Services" Was False When Made.

Rule. OAR 413-015-0415 required review of the Department's own records before characterizing service history; ORS §419B.100 requires a current threat, not a mischaracterized history.

Record. ODHS possessed Mother's neuropsychological evaluation, parenting-education records, domestic-violence-service records, releases, provider documentation, agency-contact records, and prior-case records in which her son was returned after she completed services. In the same hearing, the witness conceded Mother "has engaged in those assessments," qualifying only that engagement was "limited." The Department's records in a prior dependency (Case No. 20JU00765) likewise document Mother's participation and visitation, showing that the characterization that Mother did not participate recurs across cases and is contradicted by the Department's own files. Marquand's assertion was categorical and historical:

"... through the life of that case, the mother did not engage in any services and actually failed to do any of the services."
(Tr. 00:08:13–00:08:24, Marquand.)

Whether Mother completed *any* ordered service is a binary, historical question answerable from the Department's records; it is not a matter of "interpretation or perspective." In a prior dependency concerning Mother's son, the Assistant Attorney General stated on the record that Mother had completed her case plan.²⁶ The Department's files — the neuropsychological evaluation, parenting-education, domestic-violence-service, provider, and agency-contact records — and Marquand's own concession, for the present case, that Mother "**has engaged in those assessments**" each defeat the categorical "any" which was supplied under oath.

On the recorded call with Jermany, Complainant directly rebutted the "no services" testimony by listing the services she had completed: "I finished the ARIA domestic violence course. I had a neuropsychological exam by your agency's doctor. I participated in what I was allowed . . . I was going to two different mental health services providers."²⁷ She further noted that in the prior dependency, "the AAG gets up in court and says, Ms. Penn has completed her case plan. Your Honor, we must give this little boy back to his mother."²⁸ Jermany did not dispute these assertions; she acknowledged she was "still catching up" and could not verify or refute them.²⁹

Δ (False Categorical Testimony Requiring Misconduct Determination). Marquand testified under oath that Mother "did not engage in any services and actually failed to do any of the services." That was a categorical historical assertion, not an estimate, impression, or professional judgment. It was readily verifiable from records in ODHS' possession before the testimony was given.

ODHS policy requires review of the Department's available records in conducting and reporting its assessment. Those records included, at minimum, Mother's completed neuropsychological evaluation, service-provider information, parenting-education and domestic-violence-service records, prior-case records, and agency contact documentation. The same witness also acknowledged that Mother "has engaged in those assessments" with regard to the assessment related to the present case; Marquand characterizes Mother's participation as "limited". The agency cannot state both, factually. Either Mother participated in present-day assessments or she did not. As to historical engagement, the statement is without qualification, false.

²⁵Recorded call, Penn and Jermany, timestamp 02:27.

²⁶Record-cited; confirm the prior-case transcript and AAG statement before filing.

²⁷Recorded call, Penn and Jermany, timestamp 10:41.

²⁸Id.

²⁹Id., timestamp 02:22.

ODHS must therefore identify which of two alternatives occurred, or without including interpretation as an option, identify another alternative:

1. Marquand testified without first reviewing ODHS records necessary to accurately characterize Mother's service history; or
2. Marquand reviewed, or had access to and disregarded, records contradicting the categorical claim and nevertheless presented the claim as fact under oath. The first alternative requires a finding concerning negligent or reckless failure to perform required record review before testifying. The second requires a finding concerning knowing or reckless misrepresentation of a verifiable historical fact.

There is no third explanation that permits ODHS to characterize the statement as a difference of interpretation. Whether Mother engaged in *any* service is a binary historical question. One completed assessment, provider contact, course, evaluation, or documented service participation renders the word "any" inaccurate.

The Department's failure to correct such testimony, even after leadership was made aware of the contention by Mother constitutes ratification of a known falsehood.

Moreover, the facts of Mother's service completion in Case No. 20JU00765 were already adjudicated in her favor by the same State that now claims she completed none. When the Assistant Attorney General represented to the juvenile court in that case that Mother had completed her case plan and that the agency no longer had a basis to maintain custody of her son, the State made a prior representation by the State that Mother had completed her case plan and that custody need not continue. ODHS cannot relitigate those adjudicated facts in a subsequent proceeding as if they had never been established. To allow the agency to swear in one case that Mother completed her plan and in the next case that she "did not engage in any services" is not a difference of interpretation; it is a contradiction of the State's own prior judicial representations, made to secure a favorable outcome in each case.

Δ (Misrepresentation). Testimony that Mother engaged in *no* services contradicts records in the Department's possession — spanning more than five years — and the witness's own concession. Because the assertion is historical and categorical, it cannot be recast as a difference of interpretation: a single completed service falsifies it, and the record identifies hundreds of contacts, communications, and services Mother undertook, including the prior case in which the AAG representing the State told the court that Mother had completed her case plan and the agency no longer had a basis to maintain custody of her son.

As ODHS filed it

Fact Findings Report, p. 22; 2025-10-23 ODHS Report, p. 19

A previous psychological evaluation was performed with AshLe. It documents the following: "There are elements of histrionic and narcissistic personality, but Ms. Penn was mildly defensive in her responding. Individuals with this profile tend to display at times impetuous behavior and yet have a high self regard, viewing themselves as highly reliable and as disciplined in their communication. This profile is obtained by two groups of individuals. The first group includes well-functioning, generally adaptive individuals with no major personality disturbances who may be experiencing current psychosocial stressors. The second group of people show some behaviors which others may find difficult to tolerate. Typically, individuals with this profile have little in the way of uncertainty and while adept at winning over the favor of other initially, many relationships may not be long lasting. Individuals with this profile are often also unwilling to examine their own role in difficult situations in a somewhat erratic fashion. She is more novelty seeking than average. Most notable is that this profile is someone with a very forceful and driven energy level who is likely to be quite ambitious, leading a highly structured and strictly organized existence. Individuals with this profile are unlikely to seek individual psychotherapy." This portrayal of personality was observed to continue to be accurate during this current assessment.

What ODHS did. It began after Dr. Tongue's no-syndrome conclusion, removed the no-major-disturbance qualifier and prolonged-distress limitation, and appended a current-confirmation sentence that does not appear in the evaluation.

Dr. Tongue's report, verbatim

p. 8, MCMI-IV Personality Functioning Assessment

PERSONALITY FUNCTIONING ASSESSMENT: Ms. Penn was administered the Millon Clinical Multiaxial Inventory-IV (MCMI-IV). No specific clinical syndromes such as mood, anxiety, or thought disorder emerge from the profile. There are elements of histrionic and narcissistic personality, but Ms. Penn was mildly defensive in her responding. Individuals with this profile tend to display at times impetuous behavior and yet have a high self-regard, viewing themselves as highly reliable and as disciplined in their communication. This profile is obtained by two groups of individuals. The first group includes well-functioning, generally adaptive individuals with no major personality disturbances who may be experiencing current psychosocial stressors. The second group of people show some behaviors which others may find difficult to tolerate. Typically, individuals with this profile have little in the way of uncertainty and while adept at winning over the favor of others initially, many relationships may not be long lasting. Individuals with this profile are often also unwilling to examine their own role in difficult situations that they find themselves in which involve prolonged distress and may respond by behaving in a somewhat erratic fashion. She is more novelty-seeking than average. Most notable is that this profile is someone with a very forceful and driven energy level who is likely to be quite ambitious, leading a highly structured and strictly organized existence. Individuals with this profile are unlikely to seek individual psychotherapy.

Next Case / Parenting: I asked Ms. Penn to convey the narrative of how she became

What the evaluator reported. The MCMI-IV profile showed no specific mood, anxiety, or thought-disorder syndrome; it included a well-functioning, generally adaptive group with no major personality disturbance; and its discussion of possible erratic behavior was qualified by prolonged distress. Dr. Tongue's report also, specifically found that Mother displayed

X.C Red-Lined Actual Evaluation

The excision, alteration, and addition. Dr. Tongue's page-8 MCMI-IV paragraph is reproduced below in full. Red strikeouts mark language present in the evaluation and absent from the passage ODHS placed inside quotation marks; red bracketed text marks ODHS' substitutions. **Sentence appearing in the ODHS reports *outside* the closing quotation mark, and absent from Dr. Tongue's report:**

"This portrayal of personality was observed to continue to be accurate during this current assessment."

~~No specific clinical syndromes such as mood, anxiety, or thought disorder emerge from the profile.~~ There are elements of histrionic and narcissistic personality, but Ms. Penn was mildly defensive in her responding. Individuals with this profile tend to display at times impetuous behavior and yet have a high self-regard, viewing themselves as highly reliable and as disciplined in their communication. This profile is obtained by two groups of individuals. The first group includes well-functioning, generally adaptive individuals with no major personality disturbances who may be experiencing current psychosocial stressors. The second group of people show some behaviors which others may find difficult to tolerate. Typically, individuals with this profile have little in the way of uncertainty and while adept at winning over the favor of others initially, many relationships may not be long lasting. Individuals with this profile are often also unwilling to examine their own role in difficult situations ~~that they find themselves in which involve prolonged distress and may respond by behaving~~ in a somewhat erratic fashion. She is more novelty-seeking than average. Most notable is that this profile is someone with a very forceful and driven energy level who is likely to be quite ambitious, leading a highly structured and strictly organized existence. Individuals with this profile are unlikely to seek individual psychotherapy.

Material differences.

1. **The opening no-syndrome conclusion was deleted.** Dr. Tongue's paragraph begins: "No specific clinical syndromes such as mood, anxiety, or thought disorder emerge from the profile." The ODHS quotation begins with the next sentence. The evaluator's ruling-out of clinical pathology is a critical and limiting conclusion that materially contextualizes the profile language that follows.
2. **The prolonged-distress condition was deleted, and the sentence was reconstructed.** Dr. Tongue wrote that individuals with this profile "are often also unwilling to examine their own role in difficult situations *that they find themselves in which involve prolonged distress and may respond by behaving* in a somewhat erratic fashion." ODHS filed: "Individuals with this profile are often also unwilling to examine their own role in difficult situations *in a somewhat erratic fashion*" Twenty-two words were removed from the middle of a sentence presented as a direct quotation, and the two remaining fragments were joined. The evaluator described a possible *response* to prolonged distress. The ODHS version describes the *manner* in which the person avoids self-examination. That is a different proposition, and it is not the evaluator's.
3. **"others" was changed to "other."** Minor in meaning; dispositive as to whether the material inside quotation marks was copied verbatim.
4. **"self-regard" was changed to "self regard."**
5. **"novelty-seeking" was changed to "novelty seeking."**
6. **A present-tense clinical observation was appended outside the quotation.** The closing quotation mark falls after "unlikely to seek individual psychotherapy" The sentence that follows — "This portrayal of personality was observed to continue to be accurate during this current assessment" — is therefore not attributed to Dr. Tongue. It is the Department's own assertion, in its own voice, that it observed and confirmed a psychological profile during a current assessment.
7. **The alterations propagated across filings and authors.** The passage appears in identical altered form in the September 8, 2025 Fact Findings Report, associated with caseworker Emily Gonnuscio and in the October 23, 2025 ODHS Report, associated with caseworker Ashley L. Crafton. The same deletions, the same substitutions, and the same appended sentence appear in both.

The appended sentence is the Department's own claim, not the evaluator's. Because it sits outside the quotation, ODHS is not reporting what a licensed psychologist found. It is asserting that its own personnel observed and confirmed a personality profile "during this current assessment."

The resulting passage is not a verbatim reproduction of Dr. Tongue's conclusion. ODHS removed the no-syndrome finding, removed the prolonged-distress condition and rebuilt the sentence around the retained "somewhat erratic" language, altered the text at three further points, and then appended an unattributed present-tense confirmation of a clinical profile it says it never assessed.

Sentence added by ODHS, but absent from Dr. Tongue's report:

"This portrayal of personality was observed to continue to be accurate during this current assessment."

Material differences. ODHS removed an express limiting statement: the assessment did not identify specified clinical syndromes. That omission does not make the remaining quote false by itself, but it makes the excerpt less balanced by retaining personality-trait language while omitting the reports explicit statement that no mood, anxiety, or thought-disorder syndrome emerged.

Findings ODHS did not provide to the court.

- High-average intellectual functioning and no evidence of cognitive deficits.
- No clinical diagnoses evident and no severe personality disorder.
- Testing did not suggest that Mother was significantly at risk of harming her children.
- Mother did not merit referral for parent training and had an adequate understanding of child development and parenting practices.
- Her mental-health evaluation did not suggest significant psychiatric illness of any kind.
- That there was no indication that Mother did not have the ability to put her children's needs before her own.

The evaluation's actual conclusions, omitted by ODHS

Dr. Tongue, pp. 12–13

average range fund of information. Tests of learning and memory for both visual and verbal material show no deficit. Tests of executive functioning were similar, insofar as there is no evidence of any deficit in her capacity for processing speed, mental flexibility, set shifting, or planning and organization. A measure of personality functioning was answered in a mildly defensive fashion but did not indicate the presence of any clinical diagnoses. She has a personality style characterized by compulsive and paranoid personality traits and is highly mistrustful of others. She appears to display a degree of inflated self-regard. Individuals with her profile are sometimes unwilling to examine their own role in complicated or adverse circumstances in which they find themselves. The narrative of her involvement with Child Welfare was somewhat hard to follow but she has now dismissed several attorneys representing her and has had a fraught relationship with a variety of caseworkers and social service providers. She describes her relationship with

With regard to the specific questions posed by the referring caseworker, I find no evidence of any cognitive deficits or intellectual difficulties. In fact, Ms. Penn scores in high average range overall. There are no clinical diagnoses evident but features of compulsive and paranoid personality. Ms. Penn's insight into the conditions which led to her children being in custody appears to be fair. Ms. Penn's perception of her own strengths and weaknesses is that she sees herself as a highly organized and functional individual who has had inadequate representation and/or treatment by social service providers. I have no way of establishing the veracity of her self-report with regard to her contact with her ex-partner, which is quite at odds with that given by Child Welfare. A referral for mental health

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NAME: Ashle A. Penn
DOB: 02/15/1988

counseling would not be in the service of treatment of mood, anxiety, or thought disorder, nor is there evidence for a severe disorder of personality. I do suspect that the personality traits evidenced by Ms. Penn do contribute to some conflicted interactions with legal representation and social service providers. I do not see any evidence in the profile or in diagnostic interview that Ms. Penn has any difficulty recognizing ordinary stages of child development or that she has any unusual attitudes toward parenting practices and discipline.

RECOMMENDATIONS:

1. Mental Health Services: At this point, I do not recommend participation in substance abuse treatment or mental health counseling, given the lack of evidence for mental disorder. In spite of her history of being a victim of domestic violence, I do not see Ms. Penn as suffering from symptoms of post-traumatic stress disorder.
2. Parenting: Ms. Penn, in my opinion, does not merit referral for parent training. She seems to have an adequate understanding of child development and parenting practices which would likely not be improved by attending the typical parenting class. I do not see strong evidence that she would be unable to put the needs of her children ahead of her own. Nevertheless, Ms. Penn's mixed ability to understand the nature of Child Welfare and the degree to which she has been frank and transparent with social service providers appears to be a complicating factor in the case. I am not in a position to ascertain the veracity of Ms. Penn's statements to social services providers; however, overall, her mental health evaluation does not suggest significant psychiatric illness of any kind.
3. Neuropsychological Follow-Up: It is recommended that Ms. Penn have a follow-up session with this provider in order to review in detail the findings of the current psychological examination.

We went on to talk about her relationship with her youngest son's father. She says they have no contact at present and he is on probation. She is aware that he has visitation similar to her own, which is once a week at the Child Welfare office and which is supervised. She does not think they would ever reconcile but believes that they could cooperatively coparent as separated parents. We went on to talk further about the effect of all of these events and the domestic violence that the girls witnessed has had on them. She says that they witnessed only one incident of domestic violence and states that the girls were not physically abused by her partner Barry. She states that she does not believe the girls are showing symptoms of maladjustment or post-trauma syndrome. She is concerned that the girls' father, Alquon, with whom the girls are staying, is physically abusive to the girls and that he is not attending to their hygiene and often leaves them alone.

Dr. Tongue's report, p. 10.

Why The Omission Matters

There are far more positive conclusions and findings resulting from the same neuropsychological exam ODHS misrepresented than there are negative. These are not peripheral observations. They address the exact propositions ODHS later advanced: Mother's cognitive ability, psychological condition, parenting capacity, risk of harm, need for parent training, and alleged inability to understand her child's needs.

Competent-Basis Requirement. OEC 703 illustrates the basic evidentiary principle that an expert psychological opinion must rest on facts or data perceived by or made known to the qualified expert. ODHS may not evade that requirement by placing an unqualified employee's current confirmation of a psychological profile into a court-facing report.

Oregon Evidence Code Under OEC 703, an expert's opinion must be based on facts or data 'perceived by or made known to the expert.' The same report states Mother 'did not engage in the assessment' and that its content came from 'past assessment/agency knowledge and collaterals.' These two positions are mutually exclusive: either no Department employee perceived Mother's personality presentation during a current assessment, in which case the appended sentence rests on facts no one perceived; or some employee did observe Mother during a contact that purported to be an assessment, in which case ODHS cannot simultaneously claim the assessment is 'still ongoing,' that it 'has not had meaningful contact with the mother to fully assess her,' and that Mother's declining access 'limits ODHS's ability to assess' her functioning and protective capacities. ODHS cannot have it both ways." A document cannot simultaneously report that a parent did not engage in an assessment, that its content was drawn from past records and collaterals, and that her personality presentation was observed and confirmed during that same assessment. GAO should determine whether these statements can be reconciled and, if not, which entry is inaccurate or materially misleading, as both were placed before the juvenile court.

Protective information also omitted.

The same evaluation records Mother reporting that the girls' father, with whom the girls were then staying, "is physically abusive to the girls" and "is not attending to their hygiene and often leaves them alone." ODHS omitted this protective report while advancing a failure-to-protect theory against Mother.

A parent who reports her children's physical abuse to a licensed evaluator is taking a protective step. GAO should determine whether ODHS possessed this report when it asserted that Mother failed to protect A.D.; whether the report was disclosed in court-facing materials; and why the agency omitted it while retaining selectively adverse language from the same evaluation.

△ Alteration of a Quotation — Record Falsification, Negligent Record Handling, or Knowing/Reckless Misrepresentation; Not Interpretation). What ODHS placed before the court was not the result of the neuropsychological evaluation Mother completed. It was an agency-edited excerpt from the report of a licensed psychologist qualified to assess Mother's cognitive functioning, psychological profile, and parenting-related capacity. Caseworkers may report records and observations, but they are not qualified to replace the evaluator's findings with an altered psychological conclusion.

Marquand testified that the ordered services Mother "did not do" included "a neuropsychological."³⁰ That assertion conflicts with ODHS' own use of Dr. Tongue's completed fourteen-page neuropsychological evaluation. The agency cannot inaccurately quote by edit, and rely on a completed evaluation while simultaneously treating that same evaluation as a service Mother did not complete.

³⁰Trial testimony, Oct. 31, 2025; ODHS Report dated Oct. 23, 2025.

ODHS must explain how that statement was anything other than a knowing falsehood or, at minimum, reckless disregard for the truth.

The disputed material appears inside quotation marks and is attributed to Dr. Tongue. GAO should therefore:

1. Compare the ODHS quotation to Dr. Tongue's original page-8 paragraph word by word.
2. Identify every deletion, substitution, punctuation alteration, and added sentence.
3. Identify every employee who prepared, reviewed, approved, signed, or submitted the altered quotation and court-facing report.
4. Determine whether each variance resulted from negligent record handling, reckless disregard for the accuracy of a court-facing quotation, or knowing misrepresentation.
5. Correct or annotate each agency record and notify every court, agency employee, service provider, attorney, or other recipient to whom the altered quotation or derived characterization was provided.
6. Determine whether the assertion that Mother completed no neuropsychological service was false, misleading, or directed to some different identified referral.

This is not an interpretive disagreement. Interpretation concerns the meaning of an accurately presented record. It cannot delete the evaluator's opening no-syndrome conclusion, excise the no-major-disturbance qualifier from inside the quotation, remove the prolonged-distress condition from the retained "somewhat erratic" language, and add a sentence in the evaluator's voice.

The pattern requires investigation. Each material deletion removed a limiting, favorable, or exculpatory fact: no clinical syndrome, no major personality disturbance, no cognitive deficit, no indicated risk of harm to the children, no need for parent training, and no significant psychiatric illness. The addition supplied a current endorsement the evaluator did not give. The agency also omitted Mother's report of Father's physical abuse while advancing a failure-to-protect theory against her. GAO should determine whether that one-directional pattern reflects error, negligent record handling, reckless disregard, or knowing misrepresentation.

X.D Unqualified Clinical Determinations By ODHS Caseworker, During an Assessment the Same Report Says Mother Did Not Participate In

X.D.1 Who Was Qualified, and Who Wrote the Sentence

The evaluation ODHS quoted was performed by Christopher K. Tongue, Ph.D., whose report letterhead reads "Licensed Psychologist", and who signed it in that capacity. It was an eight-hour battery testing cognition and parenting capacity directly. His conclusions rest on an administered and scored instrument, the MCMI-IV, interpreted under his license.

The sentence ODHS appended — "This portrayal of personality was observed to continue to be accurate during this current assessment" — appears at page 22 of the September 8, 2025 Fact Findings Report and at page 19 of the October 23, 2025 ODHS Report. It sits outside the closing quotation mark and is therefore the Department's own statement, not the evaluator's.

The Fact Findings Report identifies its Primary Worker and Assigned Worker as **Emily Gonnuscio**. The October 23, 2025 report is attributed in the record to **Crafton/Giles**; Ashley L. Crafton identifies her own title as "**Social Service Specialist I**".

No license, certification, clinical training, or psychological qualification is stated anywhere in the record for Gonnuscio, Crafton, Marquand, Milne, Kitto, Hopkins, Bennett, Germany, Gallagher, or Soumpholphakdy. The only tenure figure that appears is Marquand's "eight and one-half years" as a caseworker — length of service, not clinical credential.

X.D.2 Findings Requested

1. Identify by name and position each employee who drafted, reviewed, approved, signed, or submitted the appended sentence in the September 8, 2025 Fact Findings Report and in the October 23, 2025 report.
2. State each such employee's job classification, license, certification, and clinical or psychometric training, and identify any Department authorization permitting that employee to render, extend, or confirm a psychological or diagnostic determination in a court-facing document.
3. Identify the "current assessment" referenced in the appended sentence by name, assessment number, date range, assigned worker, and instrument; produce the case-note entry recording the observation described; and state whether Mother was present for it.
4. Reconcile the appended sentence with the same report's statement that "Ashle did not engage in the assessment" and that the information "is taken from past assessment/agency knowledge and collaterals".
5. Reconcile the appended sentence with the Department's statements that the assessment is "still ongoing", that it is "challenging to determine" risk in Mother's home, that Mother's declining access "limits ODHS' ability to assess" her "functioning [and] protective capacities", and with Marquand's sworn testimony that the agency "has not had meaningful contact with the mother to fully assess her"

6. State the Department's policy governing whether, and by whom, the findings of a licensed evaluator may be quoted, condensed, characterized, extended, or confirmed as current in a document submitted to a juvenile court.
7. Correct or annotate every record containing the appended sentence and the altered quotation, and notify every court, attorney, employee, contractor, and service provider to whom either was furnished.

X.E The Department's Own Report Contradicts the Claim That Mother Refused to Retrieve A.D. From the Hospital.

Rule. A caseworker must state facts accurately in official reports and must review the available record before characterizing a parent's conduct.

Record. The Department's contemporaneous notes describe cooperation, not refusal, and are consistent across the identified records.

1. **Mother returned the agency's call.** At 4:31 p.m. on September 6, 2025, "worker Bennett received a call back from the mother on number workers had been trying to reach her at". Mother, rather than the Department, reinitiated contact after workers had been trying to reach her.
2. **Mother identified a concrete transportation barrier.** Mother reported that she had no car and was several hours away by bus to Portland. The Protective Custody Report records that Mother "couldn't get to the hospital except by bus and that would be several hours."
3. **Mother agreed to the Department's proposed transportation solution.** Worker Bennett and Mother discussed obtaining approval for another CPS worker to pick Mother up and transport her. The contemporaneous note states: "The mother agreed to this."
4. **The transportation arrangement was not completed.** Bennett obtained permission to provide the ride and attempted to call Mother at 4:46 p.m. and again at 5:28 p.m., but did not reconnect with her to carry out the arrangement.
5. **Mother reinitiated contact through the hospital.** At approximately 5:30 p.m., hospital staff told Worker Bennett that Mother was on the telephone. Mother had called the hospital where A.D. was located.
6. **Mother arranged for an available maternal relative to attend.** Mother reported that she could not obtain the anticipated time off work, but was sending her uncle instead. She identified maternal great-uncle Eric Taylor.
7. **The relative Mother sent arrived, accompanied by another available relative.** "On 9/6/25 around 6:30/7pm ODHS worker Bennett met with A.D.'s maternal great uncle Eric Taylor **who arrived at the hospital to attend to A.D. at the request of Mother.**" A second maternal great-uncle, William "Marcus" Taylor, accompanied Eric. Marcus "expressed he would be willing to take A.D. if needed," and stated that he, his wife, his brother, and his nephew "all had a clean LEA and CW record."
8. **ODHS later used the family resource Mother identified.** By the following morning, ODHS restricted all contact with Mother without identifying the safety threat it was protecting A.D. from in doing so. ODHS instructed the hospital to inform Mother that there were no patients by the name A.D. causing Mother great alarm as ODHS was contemporaneously informing Mother that her daughter remained in the hospital. ODHS possessed no court order permitting a complete prohibition on any contact with Mother and had no authority to prevent access between Mother and A.D.
9. ODHS records document that A.D. had requested to speak with Mother during her stay in the hospital and ODHS refused to provide A.D. with a phone to permit her contact with Mother without stating any identified and lawful basis for doing so.

Δ (Misrepresentation). ODHS converted an uncompleted transportation arrangement into parental refusal. Mother agreed to the Department's proposed transportation arrangement. ODHS obtained permission to provide the ride, attempted to call Mother at 4:46 p.m. and again at 5:28 p.m., but did not connect with her to carry out the arrangement. A transportation plan that was not carried out after Mother agreed to it is not evidence that Mother declined the plan.

The "refusal" characterization appeared later in jurisdictional-trial testimony, not in the contemporaneous account. The contemporaneous notes record transportation difficulty, Mother's agreement to the proposed ride, unsuccessful efforts to reconnect, Mother's later contact with the hospital, and Mother's arrangement for Eric Taylor to attend. To the extent the Department later characterized these events as Mother having "refused" to retrieve A.D., that characterization must be reconciled with the contemporaneous record. A later narrative cannot transform documented agreement to transportation, practical barriers, and an available relative-care arrangement into a voluntary refusal without identifying the specific contemporaneous facts supporting that conclusion.

The characterization also omits ODHS' decision that release would not occur that night. At 5:40 p.m., Supervisor Kitto wrote that ODHS workers had been trying to arrange a ride "**so that we can release custody to you.**" Nineteen minutes later, at 5:59 p.m., Kitto stated that A.D. would remain in protective custody and "will not be released to your custody tonight." After the 5:59 p.m. decision, transportation could no longer accomplish the stated purpose of releasing A.D. to Mother that evening. Any later claim that Mother refused to retrieve A.D. must account for ODHS' decision that it would not release A.D. to Mother that night.

Materiality. The difference between a documented transportation barrier and a claimed parental “refusal” is not semantic or interpretive. “Refusal” conveys a voluntary decision not to act and may be used to suggest parental indifference, noncooperation, or an inability or unwillingness to protect A.D. The contemporaneous notes instead record that Mother returned the Department’s call, agreed to the transportation solution proposed by the Department, contacted the hospital when the transportation arrangement was not completed, identified an available maternal relative, and caused that relative to appear at the hospital. ODHS then relied on that same family resource for placement the following day.

Any report or testimony that omits this sequence risks converting documented efforts to respond within transportation and work constraints into an inaccurate allegation of parental noncooperation.

X.F Allegation Mother Coached A.D. To Recant Is Chronologically Irreconcilable on Department’s Own Timeline.

Rule. OAR 413-015-0425 requires that a present-danger determination be immediate, significant, and clearly observable — not speculative; ORS §419B.150(1)(b) requires specific and articulable facts.

Record. ODHS recorded a coaching “concern” at approximately 2:30 p.m. on September 6, 2025 — before Mother’s first contact with ODHS or A.D. at approximately 5:00 p.m. No Department record identifies a witness, recording, or observation of coaching.

△ (**fabrication**). An allegation that Mother coached a statement that was documented **before** she had any contact with A.D. that day is impossible on the Department’s own timeline and unsupported by any observed fact.

X.G A Raw Hotline-Call Count Was Presented as Proof of Abuse or Parental Deficiency.

Rule. A CPS assessment concludes in a founded, unfounded, or unable-to-determine disposition (OAR 413-015-1010); ODHS must identify the disposition, date, alleged perpetrator, abuse type, and supporting evidence.

Record. The Department’s own Child Welfare History tells a different story than the testimony. It is a countable record: it lists reports from 8/26/1999 — when Mother was a child — through 2023, and Complainant’s tabulation totals at most 25–26 reports, not 32. The dispositions attributable to Mother are unfounded, unable to determine, closed at screening, or not applicable (e.g., 5/26/2012 unfounded; 2/22/2016 and 4/14/2016 unable to determine; 5/4/2017 unfounded; 10/11/2021 and 10/19/2021 unfounded). The founded dispositions in the history name others as perpetrators: Barry Washington, the significant other (e.g., 5/20/2008 and the 2019 threat-of-harm codings), and, in a separate case (Case ID 902821), Ebony A. Brawley and others. The only founded disposition naming Mother is a single 2019 “threat of harm / failure to protect,” coded on two dates (7/18/2019 and 11/14/2019) in generalized terms; the Governor’s Advocacy Office has acknowledged that Mother received no required notice of that disposition and that an additional founded coding was entered in error, yet ODHS still maintains it. Marquand quantified the history and its character:

“... there have been a total of 32 calls to the agency with 19 of those calls being assigned for assessment. These are related to strictly just Ms. Penn’s case ... concerns for neglect, threat of harm, exposure to violence, and concerns for physical abuse and substance use by the mother.” (Tr. 00:07:26–00:07:56, Marquand.)

△ (**Misrepresentation**). A report count and its dispositions are recorded facts, not impressions. Representing the history as “32 calls ... concerns for ... physical abuse and substance use by the mother” overstates the count, sweeps in reports from cases not involving this family at all, and attributes to Mother founded findings she has no connection to. **No founded disposition names Mother for physical abuse or substance use.** ODHS must identify this for what it is — a failure to consult its own records (negligence), an omission of the true count and dispositions (tantamount to falsification), or a reckless or knowing disregard for the truth — and may not call a countable, attributable record a matter of “interpretation.”

X.H ODHS Asserted a Current Substance-Use “Concern” While Admitting It Had Not Assessed the Issue

Rule. Under ORS §419B.100(1)(c), dependency jurisdiction depends upon conditions or circumstances that endanger the child’s welfare. The relevant question is whether the evidence establishes a *current threat of serious loss or injury* that is reasonably likely to occur. A parent’s alleged substance use, standing alone, does not establish a current risk of harm to the child. *Department of Human Services v. E.M.*, 264 Or. App. 76, 81, 331 P.3d 1054 (2014). ODHS must identify evidence connecting the asserted parental condition to a current risk of harm to the particular child; an uninvestigated or unassessed concern is not, by itself, proof of that connection.

Record. During testimony, the Department’s witness invoked “significant concerns” regarding Mother’s alleged substance use. At the same time, the witness admitted that ODHS had not had meaningful contact with Mother sufficient to assess the issue or obtain information concerning Mother’s alleged substance use. ODHS therefore asserted a present safety concern while acknowledging that

it had not developed the information necessary to determine whether the concern reflected an actual current condition, whether the alleged condition affected Mother at the relevant time, or whether it created any safety threat to A.D.

The record, as described, does not identify a substance-use assessment, observed impairment, toxicology result, treatment record, collateral source, contemporaneous report of substance use, documented effect on Mother's caregiving, or other competent evidence connecting alleged substance use to a current threat of serious loss or injury to A.D. Instead, the asserted concern remained unassessed.

Analytical Conflict. A concern may justify a properly bounded inquiry. It does not establish the fact that is being investigated. ODHS cannot accurately present an unassessed concern as proof that Mother currently used substances, was impaired, or posed a present safety threat to A.D. without identifying the evidence that supports each link in that chain.

The required distinction is straightforward:

1. A report, suspicion, or concern may identify an issue for assessment;
2. An assessment may produce evidence confirming, disproving, or leaving the concern unresolved;
3. A current safety finding requires evidence of an identified family behavior, condition, or circumstance and evidence connecting it to a current threat of harm to the child.

Here, the Department's witness acknowledged that the middle step—meaningful assessment and information-gathering—had not occurred. ODHS may not bypass that evidentiary gap by treating the initial concern as if it were a confirmed current condition and then treating that unconfirmed condition as a safety threat.

△ (**Unsupported Current-Threat Assertion**). The Department's position contains an internal contradiction. It characterized substance use as a "significant concern" while admitting that it had not meaningfully assessed Mother or obtained the information necessary to determine whether substance use was occurring, current, impairing, or connected to any danger to A.D. A concern that ODHS concedes it did not assess cannot be presented as competent evidence of a current safety threat without identifying the evidence that substantiates it.

Nor does ODHS identify the specific safety threat said to follow from the asserted concern. It must identify:

1. The actual behavior, condition, or circumstance attributed to Mother;
2. The evidence establishing that it existed at the relevant time;
3. The effect it allegedly had or was likely to have on Mother's caregiving; and
4. The resulting current threat of serious loss or injury to A.D. Absent that showing, the assertion remains an unassessed concern, not an established safety fact.

Ongoing-Assessment Concern. Mother further requests clarification regarding the Department's claimed continuing authority to assess her for substance use. If ODHS continues to seek information, monitoring, testing, interviews, or other assessment activity concerning substance use, it should identify the particular current safety basis authorizing that activity, the evidence supporting that basis, the scope of the assessment, the decision-maker who authorized it, and the criteria ODHS will use to conclude the inquiry. Repeated intervention without an identified, current, and evidence-supported safety basis risks converting an unresolved suspicion into an indefinite basis for interference with Mother's parental relationship as is shown across several of ODHS' postulations.

Requested Findings and Corrective Action.

Mother requests that the GAO:

1. Identify every record, report, assessment, safety analysis, court filing, testimony, or communication in which ODHS described Mother's alleged substance use as a "significant concern" or a safety concern;
2. Identify the specific evidence supporting each assertion, including the source, date, author, and factual basis for concluding that substance use was current;
3. Identify every substance-use assessment ODHS performed or attempted, including the date, assessor, method, information requested, information obtained, and result;
4. Identify the specific harm to A.D. that ODHS claimed was likely to result from Mother's alleged substance use and the facts connecting the alleged condition to that harm;
5. Explain how ODHS reconciles its safety characterization with the witness's admission that ODHS had not had meaningful contact with Mother sufficient to assess or obtain information about substance use;
6. Identify the legal, factual, and supervisory basis for any ongoing substance-use assessment, monitoring, testing request, contact, or other intervention directed toward Mother; and
7. Correct, qualify, or remove any record that presents an unassessed substance-use concern as an established current condition or as proof of a current safety threat without identifying supporting evidence.

| X.I ODHS Obtained a Default While In Direct Communication With Mother.

Rule. ORS §419B.168(1) (proceed without unnecessary delay; notify the court); due process requires notice reasonably calculated to reach the parent.

Record. The Department's own diligent-efforts materials document Mother's correct address, telephone contact, and email correspondence to which she responded. ODHS nonetheless used a transposed address, did not use her responsive email channel, did not obtain court-authorized alternative service, and secured default at the October 31 jurisdictional hearing on a representation that she could not be located. The court later acknowledged the address was wrong.

Δ (**Misrepresentation**). Representing that a locatable, actively communicating parent could not be found contradicts the Department's own records and went to the court's authority to proceed.

| X.J ODHS Faulted Mother for Limited Visitation Caused By Its Placement and Contact Restrictions.

Rule. OAR 413-015-0415 (record review); the duty to state facts accurately.

Record. ODHS restricted contact during hospitalization without asserting what safety threat was being mitigated by instructing the hospital to inform Mother that there was no patient by the name of A.D.. Then, ODHS placed A.D. more than thirty miles away, and provided no transportation assistance, no visitation plan as required under OAR 413-070-0830 providing that individual family members each have the right to visit as often as reasonably necessary to maintain and enhance their attachment to one another. When ODHS went before the court, it attributed the predictable consequences of such a far placement and its lack of visitation support and planning to Mother. The record also contains inconsistent entries concerning whether visits occurred as the agency likely was not privy to each visit that occurred at Mother's Uncle's (and A.D.'s Great Uncle's home).

Δ (**Misrepresentation**). ODHS attributes to Mother the consequences of its own placement, contact-restriction, failure to establish a visitation plan and failure to provide services to assist Mother, and A.D.'s siblings with visitation support. Any shortage of visitation in this case was not any failure by Mother who continues to maintain nearly daily phone and video contact with A.D. as well as having undertaken the limited amount of visits completely without any agency assistance. Even after ODHS claimed they would provide gas cards so that Mother might be able to enlist the assistance of associates in driving her to Troutdale, the agency has not delivered on this commitment.

| X.K Accuracy of Statements Attributed to Marie Penn

1. Identify the exact source record, author, date, and employee for each statement attributed to Marie Penn.
2. Is there a recording, contemporaneous note, signed statement, email, intake record, or other source material supporting each attributed statement?
3. Did any employee contact Marie Penn to verify the statements after receiving her sworn affidavit?
4. If the source material cannot be produced or does not support the attribution, will ODHS retract, correct, or annotate the statements as disputed or unsupported?
5. Identify every report, assessment, court filing, provider communication, or agency decision in which either attributed statement was repeated or relied upon.

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR WASHINGTON COUNTY — JUVENILE DEPARTMENTIn the Matter of
AL-MIRA AMIRA JAZMINE DAVIS,
A Child.

Case No. 25JU04261

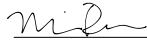
Affidavit of Marie Penn
Maternal Grandmother of A.D.

I, MARIE A. PENN, being first duly sworn, depose and say:

1. I am over the age of eighteen and competent to testify. I make this affidavit on personal knowledge.
2. I am the mother of AshLe' Antoinette Penn and the maternal grandmother of the child in this matter, Al-Mira Davis.
3. I understand that records of the Oregon Department of Human Services ("ODHS") attribute two statements to me. Both statements are false. I did not make either of them.
4. **First statement.** An ODHS Fact Findings Report dated August 19, 2025 (at page 22) states that I told a caseworker that I "had been trying to get custody of Ashle's children for years because she is not fit to be a mother but was denied custody by the agency." **I never made that statement.** I have never told any ODHS caseworker or employee that my daughter is not fit to be a mother. I have never sought custody of my daughter's children on the ground that she is unfit, and I was never denied custody of her children by the agency for any such reason.
5. **Second statement.** An ODHS report dated December 30, 2019 states that "Ashle's mother reportedly suspects that Ashle has 'schizophrenia.'" **I never made that statement.** I have never told any ODHS caseworker, employee, or

reporter that my daughter has schizophrenia, is schizophrenic, or suffers from any such mental illness. I am not qualified to diagnose any medical or mental-health condition, and I have never suspected or claimed that my daughter has schizophrenia.

6. I have reviewed the two statements described above, and each is untrue. I did not make them, and they do not reflect anything I have ever said to ODHS or to any person acting on its behalf.
7. I make this affidavit freely, for use as evidence in the above-captioned matter and any related proceeding.



MARIE A. PENN, Affiant

SUBSCRIBED AND SWORN to (or affirmed) before me this 7th day of August,
2026, by MARIE A. PENN.

Marie Penn. Marie Penn denies under oath that she made either statement ODHS attributed to her:

- That she had sought custody because Mother was "not fit to be a mother." *ODHS Fact Findings Report* dated Sep 8, 2025, p. 22.
- That she suspected Mother had "schizophrenia." *ODHS report* dated Dec. 30, 2019.

She swears that she never made either statement to any ODHS employee.

Statements Were Falsely Attributed to Mother's Mother. Rule. The duty to record source statements accurately in official reports; ORS §419B.150(1)(b) (specific and articulable facts). **Record.** Marie Penn's sworn denial creates a material record-integrity issue. GAO should require production of the contemporaneous source note, recording, email, intake report, or witness statement for each attributed remark; identify the employee who recorded it; and determine whether the entry should be corrected, retracted, or annotated as disputed.

Marie A. Penn, the maternal grandmother, has sworn that two statements the Department attributed to her are false and that she made neither. An ODHS Fact Findings Report dated August 19, 2025, at page 22, attributes to her the statement that she "had been trying to get custody of Ashle's children for years because she is not fit to be a mother but was denied custody by the agency." An ODHS report dated December 30, 2019, attributes to her the statement that "Ashle's mother reportedly suspects that Ashle has 'schizophrenia.'" She denies both under oath, swearing she never made either statement to any agent of the Department. These are outright denials, not retractions: according to the person to whom the statements are attributed, they were never said to anyone at ODHS.

X.L The Supervisor Ratified Contested Agency Actions and Dismissed Fact Conflicts as "Interpretation."

Rule. ODHS | OHA Policy 100-012 and the employee's duty of candor and record integrity; the supervisory duty, once on documented notice of a contradiction, to investigate, preserve, correct, or expressly explain why the evidence does not establish falsity.

Record. After receiving the transcript, records, and sworn statement, the supervisor issued a conclusory "no indication" response, identified no evidence reviewed, reframed the issue as whether "direct access" is standard, and directed Mother back to caseworkers while acknowledging a caseworker transition was necessary. Faulkner's written response states that she consulted the ODHS team and reached her conclusion; her own account establishes the consultation, so it need not be proven independently.

Supervisory Review After Notice. Before documented notice, a supervisor may reasonably rely on information supplied by subordinate staff. Once Mother supplied the transcript, identified records, and sworn statement showing specific conflicts, however, the matter required a record-based supervisory response and continued reliance without checking the challenged records became a new supervisory act. Labeling documented factual conflicts "interpretation" does not discharge the duty; it adopts the uncorrected record. A binary historical fact — whether Mother completed any services — cannot be reclassified as "interpretation." By adopting that fact after consulting the team and receiving documentary proof of its falsity, Faulkner made the conclusion her own and assumed personal responsibility for her subordinates' representations. A blanket "interpretation" response that disposes of documented, record-based contradictions without identifying a single record reviewed is not supervision; it is ratification. Her response admits of one of two states of mind and no third: a failure to review the records placed before her (per se negligence), or a review that saw the

contradictions and ratified them anyway (knowing or reckless disregard).

Delta (Supervisory Record-Integrity Failure Requiring Review). The issue is not whether a supervisor may disagree with Mothers' conclusions. The issue is whether the supervisor reviewed the identified source records before allowing ODHS to continue relying on a challenged factual representation. A historically verifiable statement—for example, whether Mother completed a service, whether a disposition was founded or unfounded, whether Mother was contacted, whether an allegation was recanted, or whether a statement was actually made by an identified person—cannot be resolved by labeling it a difference of “interpretation” without identifying the source records and explaining the conclusion drawn from them. If the supervisor did not compare the challenged representation with the identified records, GAO should determine whether that omission violated Policy 100-012 and applicable supervisory expectations. If the supervisor did compare the records but continued to rely on a materially inaccurate or incomplete representation, GAO should determine whether correction, annotation, withdrawal from reliance, employee-conduct review, or referral to ODHS Human Resources and DAS CHRO is required.

The “Interpretation” Label Refutes Itself. “Interpretation” presupposes that the records were reviewed and analyzed; it asserts knowledge, not ignorance, and cannot coexist with a claimed inability to assess. If, as Faulkner states, the records were reviewed and read a particular way, then the representations Marquand made at the October 31 jurisdictional hearing concerned binary facts—each either happened or it did not—and interpretation cannot convert a binary fact into a defensible range. Just as ODHS maintains that it cannot revisit the court's decision to take jurisdiction, it cannot alter the facts it presented to obtain that jurisdiction. Presenting a binary falsehood to the court to secure jurisdiction constitutes judicial deception: a deliberate falsehood or a reckless disregard for the truth in matters placed before the court. Two questions resolve the point, and neither admits of interpretation: Did Mother complete services—yes or no? Did Mother fail to plan for her daughter—yes or no? The Department's own records answer both, and the GAO should require ODHS to state both answers, correctly, on the record.

| X.M Replacement Caseworker Admitted No Safety Threat Against Mother — Requires Only Compliance/Policing.

Rule. A public agency may not condition the return of a child on a parent's waiver of constitutional rights or on generalized demands for cooperation when no specific, articulable danger has been identified. *Calabretta v. Floyd*, 189 F.3d 808, 813 (9th Cir. 1999) (government officials cannot coerce entry without warrant or exception). The State bears the burden to prove a current threat by specific and articulable facts; a parent's insistence on knowing the alleged danger is not evidence of unfitness. ORS §419B.150(1)(b).

Record. On a recorded call between Complainant and newly assigned ODHS caseworker Fyndi Jermany, Jermany acknowledged she was “still catching up on your case” and had not fully reviewed the file before making demands.³¹ When Complainant asked Jermany to identify the specific conduct by Mother that posed a danger to A.D., Jermany could not. Instead, Jermany read from a template: the safety threats were that “one or both parents is violent or cannot control their behavior” and that “one or both parents ... lack parenting knowledge or skills.”³² Complainant immediately identified the defect: the template said “one or both parents,” not Mother specifically.³³

When pressed again for the specific danger, Jermany admitted: “

The dangerous language is not ... associated with you ... The issue that the agency is having with you is that you're not willing to comply or willing to cooperate with the State Department.”³⁴

Jermany then stated the actual condition for return: “You need to demonstrate that you're willing to be an available parent for Elmira.”³⁵ She listed four generic conditions for return—a home-like setting, no barriers to safety providers, at least one parent willing to cooperate, and available resources—and when Complainant noted that the father satisfied the “at least one parent willing” condition, Jermany moved the goalposts, stating it would have to apply to the parent the child was placed with.³⁶

Δ (Admission Against Interest; Compelled Waiver). Jermany's statements are admissions by an agent of the Department. She confirmed that: (i) she had not reviewed the case before making demands; (ii) the safety-threat language is generic and not individualized to Mother; (iii) there is no “dangerous” conduct associated with Mother; and (iv) the Department's actual grievance is non-cooperation, not safety. A demand that a parent “demonstrate willingness” as a precondition to custody is the precise unconstitutional conditioning the Ninth Circuit forbade in *Calabretta*. ODHS cannot maintain both that Mother is dangerous and that no dangerous language is associated with her. The Office must require ODHS to reconcile Jermany's admission with Marquand's sworn testimony that Mother “lacks skills” and “does not understand” the child's needs, and to identify which statement is false.

³¹Recorded call, Ashle Penn and Fyndi Jermany, August 17, 2026, timestamp 02:22; repeated at 28:10 (“I'm still catching up”).

³²Id., timestamp 03:51.

³³Id., timestamp 04:44.

³⁴Id., timestamp 35:03.

³⁵Id., timestamp 25:48.

³⁶Id., timestamp 42:11–43:37.

| X.N ODHSRelies on Grounds Never Pleaded to Justify Continued Separation From A.D.

Rule. A juvenile court's jurisdiction rests on the allegations pleaded in the petition and proven at the jurisdictional hearing. ORS §419B.100; ORS §419B.200. ODHS may not rely on factual predicates not pleaded, not noticed, and not subject to adversarial testing to sustain a removal after judgment. *Dept. of Human Services v. C.W.*, 305 Or App 75 (2020) (jurisdiction requires current threat proven by competent evidence at the time of the hearing). Continued custody must be justified by the pleaded and proven allegations; post-hoc rationalizations violate due process and the notice requirement implicit in ORS 419B.100.

Record. The petition and proof at the October 31, 2025 jurisdictional hearing rested on three pleaded allegations against Mother: (A) that she lacks skills and understanding; (B) that she is unwilling or unable to protect A.D. from Father; and (C) that she is involved in criminal activities interfering with safe parenting. ODHS did not plead substance abuse as a standalone jurisdictional basis; did not plead the existence of arrest warrants as a jurisdictional predicate; and did not plead any "open assessment" regarding Complainant's son as a basis for A.D.'s removal.

Nevertheless, following the default, caseworker David Milne informed Mother that an "open assessment" concerning an allegation that her son had been spanked with a belt was a barrier to A.D.'s return. This assessment, which ODHS has left open since at least May 2026, concerns a different child, a different household, and a different allegation than any pleaded basis for A.D.'s removal. ODHS has also repeatedly referenced Mother's active warrants and "significant concerns" about substance use—the latter admitted by Marquand to be unassessed—as reasons A.D. cannot return. None of these post-judgment rationalizations appeared in the petition, the shelter record, or the jurisdictional proof.

△ (**Post-Hoc Rationalization; Lack of Notice and Pleading**). A default obtained on Allegations A, B, and C does not license ODHS to rely on unpleaded, unproven, and unassessed grounds to maintain custody indefinitely. The Department's use of the "open assessment" regarding Mother's son, its reliance on unpleaded warrants, and its continued invocation of an unassessed substance-use "concern" each constitute an independent due-process violation: Mother had no notice that these matters would be used to justify A.D.'s separation, had no opportunity to test them at the jurisdictional hearing, and the Department's own records do not support them as current threats to A.D. The Office must require ODHS to identify the pleaded allegation that authorizes continued custody on these grounds; the record identifies none.

| X.O ODHSFailed to Provide Reasonable Accommodations for Complainant's Documented Disabilities and Then Used the Unaccommodated Barriers as Evidence of Unfitness.

Rule. Under Title II of the Americans with Disabilities Act, 42 U.S.C. §§12131–12165, and Section 504 of the Rehabilitation Act, 29 U.S.C. §794, a public entity may not discriminate against a qualified individual with a disability and must make reasonable accommodations to afford that individual meaningful access to its programs and services. In the dependency context, the Oregon Supreme Court has held that ORS §419B.090(5) "requires services to be tailored so that all parents, including those with disabilities, have the opportunity to benefit from those services." *Dept. of Human Services v. C.H.*, 373 Or 26 (2024). An agency that fails to take into account a parent's limitations and make reasonable accommodations "cannot be found that reasonable efforts were made to reunite the family." *In re Hicks*, 315 Mich App 251 (2016). Agencies must base decisions on actual facts and individual assessment, not on "assumptions, generalizations, fears, or stereotypes about disabilities." *In re H.C.*, — (D.C. App. 2018).

Record. Complainant's One Oregon benefits record, maintained in the Department's own system, documents the following reasonable accommodations requested and required for her participation in Department programs: all communication in writing; review of action items in writing; consistent staff if possible; transportation; phone appointments; ask before touching; closed doors; and online services. These accommodations are direct manifestations of documented anxiety, depression, and hypervigilance—a clinically recognized trauma response in which the nervous system remains in a state of heightened alert. ODHS did not honor a single accommodation.

Instead, ODHS demanded unannounced home entry, unscheduled in-person contact, and immediate verbal engagement, and then recorded Mother's inability to comply as "non-engagement," "refusal," and "failure to plan." Caseworker Marquand testified that Mother's emails were "more demands than anything" and that she "refused to meet with the agency"—characterizing Complainant's exercise of her documented written-communication accommodation as evidence of parental deficiency. ODHS placed A.D. more than thirty miles away, provided no transportation assistance, and then used the predictable absence of visits as proof of Mother's lack of interest—punishing her for the very transportation barrier her accommodation identified. ODHS repeatedly changed caseworkers and then attributed the resulting discontinuity to Mother's failure to build rapport, even though consistent staff was itself a requested accommodation.

The Governor's Advocacy Office previously found that ODHS failed to send the mandatory founded-disposition notice for the 2019 assessment. For a parent whose documented accommodations include written communication and advance review of action items, that notice was not merely a procedural luxury; it was the specific accommodation that would have enabled her to understand and respond to the allegation. By withholding the notice, ODHS both violated due process and denied a disability accommodation, and it now relies on that procedurally void, unchallenged finding as a current safety threat.

△ (**Discriminatory Misuse of Accommodations**). ODHS converted every documented accommodation into evidence of danger. Under *Dept. of Human Services v. C.H.*, ODHS had an affirmative duty to tailor its services to remove barriers that people with

disabilities uniquely face. By ignoring that duty and then using the resulting barriers as proof of unfitness, ODHS engaged in disability-based discrimination. The “32 calls” history itself is partly attributable to the Department’s failure to accommodate: where a parent requires written communication and consistent staff to manage anxiety and hypervigilance, rotating caseworkers and refusing written confirmation of action items predictably multiply contacts. ODHS then used the contact volume it generated through non-accommodation as evidence of Complainant’s deficiency rather than its own failure to provide accessible services.

X.P ODHS Previously Placed A.D. With Mother Without Conditions, Proving There Was No Safety Threat in Mother’s Home.

Rule. An administrative agency must treat similarly situated cases consistently and must reconcile contradictory positions taken in the same matter. An agency cannot impose a safety-plan requirement on one parent for the same child under identical circumstances where it imposed none months earlier. ORS §419B.185(3) requires the court to consider whether “the provision of reasonable services can prevent or eliminate the need to separate the family.” Under ORS §419B.150(5), ODHS must identify “the least restrictive means available” to protect the child. Federal law at 42 U.S.C. § 671(a)(15) similarly requires placement in the “least restrictive” setting, which includes relative placement.

Record. Complainant informed Germany that A.D. was removed from her father twice in 2024–2025. The first time, in April 2025, “DHS notified me. Put her in a car, brought her to my house, dropped her off, waved goodbye. Then Emily Gonnuscio . . . came to my home . . . sat in my house, assessed it. Related to the first removal and interviewed my children for over two hours.”³⁷ No safety plan was required. No “direct access” demand was made. No home-entry conditions were imposed. A.D. was simply delivered to Mother’s care because, in the Department’s own contemporaneous judgment, Mother’s home was safe.

The second removal, in September 2025, produced the opposite result: ODHS demanded safety-planning, “direct access,” and unannounced home entry as prerequisites for return, while testifying that no services could have prevented removal. Complainant directly challenged this inconsistency: “You cannot remove a child when there is a family member willing and able and available to receive them . . . You certified my uncle before the shelter hearing. She was taken on a Saturday. By Monday, he was her placement. Because he was there the night of the 6th. Because I sent him.”³⁸ She further noted: “The first time you didn’t safety plan with me. You didn’t require that for her to be here with her siblings and her mother. An agency cannot take two different positions like that.”³⁹

Δ (Arbitrary and Capricious Conduct; Pretext). The Department’s actions are irreconcilable. If Mother’s home was safe enough for immediate, unconditional placement in April 2025, it was safe enough for relative placement in September 2025. ODHS cannot claim “no service could have prevented removal” when the very relative Mother sent to the hospital was certified as placement within twenty-four hours. The added conditions in September—safety-planning, direct access, unannounced visits—appear pretextual, designed to secure Mother’s consent to agency intrusion rather than to address any new or different danger. The Office must require ODHS to produce the April 2025 case record, identify what changed between April and September that justified the new conditions, and explain why the first placement required no safety plan while the second requires a coerced one.

X.Q ODHS Supported the Removal of a Criminal-Court Protection and the Return of A.D. to Father, Then Used the Later Harm in Father’s Care Against Mother

Rule. ODHS must make safety, placement, reunification, and recommendation decisions on accurate, child-specific facts and must identify the factual basis for any position it takes concerning a child’s safety. When the Department recommends, supports, or materially contributes to the removal or relaxation of a protective restriction, it must have a documented, record-supported basis for that position and must account for the foreseeable safety consequences of the resulting placement decision. ODHS | OHA Policy 100-012 requires employees to comply with law, rule, and policy as keepers of the public trust.

Record. After A.D.’s first removal from Father’s care, a criminal-court no-contact restriction limited Father’s contact with A.D. Mother alleges that ODHS appeared in the criminal proceeding and supported lifting or modifying that restriction. Mother then sought to modify the custody arrangement, but the court denied her request. ODHS supported A.D.’s placement or return to Father. A.D. was thereafter returned to Father’s care.

The Department’s own later materials identify the subsequent incident in Father’s care as the particularized event of concern: Father was alleged to have assaulted A.D., and A.D. later experienced a completed self-harm episode while residing in Father’s home. The agency’s prior records also identify Mother’s earlier concerns about Father’s violence and care of the children. Yet, after the later incident, ODHS directed safety-plan conditions, access demands, and assessment requirements principally at Mother without identifying a Mother-specific behavior, condition, or circumstance that caused the later harm.

Causal and Record-Integrity Conflict. ODHS cannot accurately rely on the later incident in Father’s care as generalized evidence against Mother while omitting its own role, if any, in supporting the removal of the criminal-court protec-

³⁷Recorded call, Penn and Germany, timestamp 07:24.

³⁸Id., timestamp 15:21–16:39.

³⁹Id., timestamp 25:18.

tion and A.D.'s return to Father. If the Department urged, supported, supplied information for, or otherwise materially contributed to lifting the restriction or returning A.D. to Father, that history is material to the Department's later safety narrative. The issue is not that ODHS caused Father's alleged conduct. The issue is whether ODHS, after previously identifying or participating in a process addressing Father-related danger, supported the removal of a protective restriction and return to Father without an adequately documented safety basis, then omitted that decision history while using the later Father-related incident to impose Mother-specific conditions. That sequence requires an agency explanation, especially where Mother had disclosed allegations of Father's physical abuse to ODHS, yet the agency still supported A.D.'s return to Father after her first removal in 2025.

3/22/24- founded for physical abuse to Al-Mira by her father Al-Quan Davis. Al-Mira made disclosures that her father Al-Quan hit her with a belt across her legs to the point of injury. Al-Quan acknowledged hitting Al-Mira with a belt but reported hitting her 5-7 times and Al-Mira indicated he hit her 15-17 times. Al-Mira was able to provide pictures of her legs following this incident. In these photos, there are multiple striations across her shins that are consistent with markings from a belt. Al-Mira

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reported that it had hurt to walk following this incident and she reported ongoing bruising that was not visible due to the color of her skin but was still painful to the touch days after the incident. Al-Quan did not deny this incident occurring to ODHS, although he repeatedly denied physical discipline to LEA. In speaking with the school, they reported ongoing concerns for Al-Quan's temper and the disclosures that Al-Mira will make. There is a significant pattern of reports with concerns for physical abuse by Al-Quan and he has been educated by the agency about his use of physical discipline crossing the line into abuse. This dispositional finding is supported by the children's disclosures which were corroborated by photographs of the injuries and statements of concern by the child's mother.

Δ (State-Enhanced Danger and Selective Attribution). The Department appears to rely on a Father-related incident to maintain restrictions against Mother while failing to disclose or account for ODHS's own earlier role in the decisions that enabled A.D.'s return to Father. A record that presents only the later harm, while omitting ODHS's prior position regarding the criminal-court restriction and Father placement, is materially incomplete.

ODHS must not convert harm alleged to have occurred in Father's care into a presumption of danger in Mother's care. The Department must instead identify: (1) the particular Mother-specific conduct, condition, or circumstance it claims created danger; (2) the evidence supporting that claim; (3) the connection between Mother's conduct and the alleged harm; and (4) why Mother-specific restrictions are necessary rather than an unsupported transfer of Father-related safety concerns to Mother.

Requested Findings and Corrective Action. Mother requests that GAO:

1. Produce the complete criminal-court record concerning the no-contact restriction, including the original order, charging instrument, release conditions, motions, hearing notices, transcripts, recordings, orders lifting or modifying the restriction, and docket entries;
2. Identify the restrained person, protected person, issuing court, case number, entry date, effective dates, terms, factual basis, and each modification or termination of the restriction;
3. Identify every ODHS employee, supervisor, attorney, contractor, or agent who communicated with the criminal court, prosecutor, defense counsel, law enforcement, Father, Mother, or another participant regarding the restriction or A.D.'s return to Father;
4. Produce every ODHS case note, email, text, report, safety assessment, staffing note, court filing, recommendation, or communication concerning whether the restriction should be lifted, modified, continued, or enforced;
5. Identify the safety assessment and evidence ODHS relied upon when it supported or did not oppose A.D.'s return to Father after the first removal;
6. Explain why Mothers contemporaneous reports regarding Fathers alleged violence, child care, hygiene, or supervision were not treated as material protective information in the Department's later analysis;
7. Explain how ODHS distinguishes the Father-related events from any asserted Mother-specific safety threat; and
8. Correct or annotate any ODHS record that inaccurately identifies the parties to the criminal-court restriction, omits ODHS's role in its modification or termination, or uses Father-related events as a substitute for an identified Mother-specific basis for intervention.

XI. Procedural Violations — Mandatory Process, Notice, and Record Integrity

Each claim in this Part identifies a mandatory, non-discretionary process ODHS was required to follow and did not.

XI.A ODHS Used General Agency Authority Instead of Statutory Protective-Custody Authority.

Rule. ORS §418.010 bars any state agent from taking charge of a child over a parent's objection under general child-welfare authority; continued custody required the specific predicate, particularity, and least-restrictive-means findings of ORS §419B.150(4)–(5).

Record. After Mother objected, ODHS retained A.D. while substituting the phrases “safety plan,” “non-engagement,” “cannot assess,” and a demand for “direct access” for any stated statutory basis or particularized safety finding.

△ (**Omission**). ODHS omitted the statutory predicate the law requires and replaced it with generalized access demands. *Weaver* forecloses treating investigatory authority as entry or access authority. Identify the authority invoked at each stage, the decision-maker, the predicate selected, and the record showing its requirements were met.

XI.B The Shelter Court Was Not Told the Actual Basis for Custody or the Recantation, and the Reasonable-Efforts Finding Rests on That Incomplete Record.

Rule. ORS §419B.185(1), (3)–(4): the parent may present return-home evidence; the court must make written reasonable-efforts findings; and ODHS must present written documentation of its efforts and the basis for custody.

Record. The operative 5:59 p.m. basis (the alleged, later-recanted self-harm statement) was not presented as the basis for the hearing; a parental-danger narrative was. The recantation was not fairly presented.

△ (**Omission**). ODHS omitted from the judicial presentation the actual emergency basis and the exculpatory recantation. A reasonable-efforts finding entered on that record is not an informed finding, because the court could not test necessity or less-restrictive alternatives.

XI.C The Department’s “Reasonable Efforts” Representations Contradict Its Own Record.

Rule. A reasonable-efforts finding must rest on the Department’s “written documentation” of the efforts made to prevent removal, ORS §419B.185(3)–(4), and reasonable efforts include consideration of less-restrictive alternatives, ORS §419B.340.

Record. The Department’s Protective Capacity assessment states that no efforts were made to prevent removal because of the asserted level of the threat of harm — that is, ODHS made *no* efforts to prevent removal. Yet within approximately twenty-four hours ODHS certified Mother’s maternal uncle as A.D.’s relative placement and maintained that placement for roughly ten months — a less-restrictive alternative that was both available and used. Mother’s use of the maternal uncle on September 6 was not merely a request that ODHS find substitute placement after removal. Mother identified the uncle as an immediately available family-support resource while reporting temporary work and transportation barriers and arranging for A.D. to be retrieved and brought to Mother’s home. The issue is therefore whether ODHS evaluated that same family resource as a reasonable service or support capable of preventing removal from Mother in the first place. If ODHS concluded that A.D. could not safely return to Mother even with the uncle’s immediate assistance, ODHS must identify the specific safety threat that remained, the employee who made that determination, the time it was made, and the contemporaneous record explaining why the family-supported plan could not manage the alleged risk. At the same time, counsel for ODHS — Assistant Attorneys General Wadia⁴⁰ and Ricciado⁴¹ — represented to the court that reasonable efforts had been attempted to prevent removal.

△ (**Contradiction; Unsupported Representation**). These positions cannot coexist. If ODHS made no efforts to prevent removal because of the threat level, then the representation that efforts were attempted is unsupported by the Department’s own documentation under ORS §419B.185(4); if efforts were attempted, the Protective Capacity assessment is false. Either way, the Department’s own certification of a relative placement refutes the premise that no service or alternative could prevent removal. A statement of counsel is not evidence, but it is what the court heard and relied upon in entering its reasonable-efforts finding. The Office must require ODHS to produce the ORS §419B.185(4) written documentation of the efforts made, and to reconcile that documentation against both the Protective Capacity assessment and the representations of Assistant Attorneys General Wadia and Ricciado; whether counsel’s representation complied with the duty of candor (RPC 3.3) is a matter for Oregon State Bar referral.

XI.D ODHS Failed to Provide Mandatory CPS-Disposition Notices, Then Used the Un-Noticed Disposition as Reliable Adverse History.

Rule. OAR 413-015-0470(1)(b)–(c) requires notice of every disposition and written notice to a parent named as perpetrator of a founded disposition; OAR 413-010-0715(1) requires the CF 313 notice by certified restricted-delivery or hand delivery; the review pathway is OAR 413-010-0700 to 413-010-0750. Any exception requires documented authorization.

Record. The Governor’s Advocacy Office previously informed Mother that ODHS did not send the required founded-disposition notice for at least one assessment. ODHS nonetheless characterizes Mother as having an established “history” and treats the absence of a prior challenge as validating the allegation.

⁴⁰ Jurisdictional Hearing — AAG Wadia.

⁴¹ Shelter Hearing, September 8, 2025 — AAG Ricciado, 01:11–3:34 PM: “Well, you, Honor, today. DHS is asking for the court to grant a temporary custody of this child. This child was taken in protective custody over the weekend without a court order due to imminent threat of severe harm to this child. The agency is asking the court to find that jurisdiction is appropriate for the uccjda. The child has lived in Oregon for the last six consecutive months. Reasonable efforts have been made to prevent the need for removal. And diligent efforts have been made to notify parents and grandparents of today’s hearing, along with diligent efforts to place the child with relatives. This child is placed in a relative placement. This is substitute out of home placement. The agency would ask the court to find as appropriate as the least restrictive placement.”

△ (**Omission and Misuse**). ODHS cannot withhold the mandatory notice that would have triggered Mother's review rights and then rely on the resulting absence of challenge as proof. For any assessment where ODHS claims notice was excepted, it must identify the exception invoked, the authorizing supervisor or manager, the date, and the supporting documentation.

XI.E The Child-Welfare History Commingles an Unrelated Family and Misnames the Perpetrator.

Rule. OAR 413-080-0051 and the duty to maintain accurate records attributable to the correct person; a parent may not be characterized by another individual's or family's founded findings.

Record. The Child Welfare History relied on in this case incorporates a separate case (Case ID 902821) whose founded dispositions name Ebony A. Brawley, Austin Dero Brawley, Floyd E. Taylor, and Barry Washington — individuals unrelated to Mother's care of A.D. The same history refers to Mother's former significant other as both "Barry Washington" and "Barry Sanders," and its summary attributes to Mother a founded "threat of harm" arising from that person's domestic violence.

△ (**Record Integrity**). Folding an unrelated family's founded findings and an inconsistently named third party into Mother's history inflates and mischaracterizes it. Identify and segregate every entry that does not belong to Mother's case, and reconcile the "Washington"/"Sanders" naming.

XI.F Service and Default Were Obtained Contrary to the Department's Own Records.

Rule. ORS §419B.168(1); due process; the diligent-efforts and service requirements governing default. Juvenile courts have personal jurisdiction over (1) a party *who has been served in the manner provided in ORS §419B.812 to §419B.839*, to the extent that prosecution of the action is not inconsistent with the Constitution of this state and the Constitution of the United States

Record. ODHS relied on a transposed address, bypassed Mother's responsive email channel, sought no court-authorized alternative service, and obtained default while its own materials showed her correct address and active communication.

△ (**Procedural Default on a False Predicate**). A default secured on a "could not be located" predicate that the Department's own records disprove is a procedural failure that allowed an untested narrative to become entrenched. The Office must identify every person who prepared, reviewed, approved, submitted, adopted, or continued to rely on the service and default materials — each declaration of diligent efforts, each return of non-service, and each representation to the court that Mother could not be located — and state, for each, what that person knew and what the Department's own records showed.

The Department's process server was dispatched to an incorrect address (17458 rather than 17548) despite the Department's possession of Mother's correct address and its history of correspondence at that address. Under ORS §419B.833(1)(a), proof of service must indicate that the server "reasonably believes that the person served is the identical one named in the summons." Service to a stranger at a transposed address cannot satisfy that requirement. Under ORS §419B.823, service must be "reasonably calculated under all the circumstances to apprise the person served." Where the agency knew the correct address, sent the server to the wrong one, and then represented to the court that Mother could not be located, the service failed both the statutory and constitutional standards. *Dept. of Human Services v. C.M.R.*, 281 Or App 886, 887, 383 P3d 985 (2016) (per curiam) (reversing jurisdictional judgment for deficient service).

XI.G Safety Determinations Were Not Documented as the Rules Require.

Rule. OAR 413-080-0051 requires staff to document the behaviors, conditions, or circumstances observed and any protective-action plan or modification in the Department's electronic information system.

Record. ODHS invoked "safety plan" and "present danger" without identifying an immediate, significant, and clearly observable condition, and without the contemporaneous documentation the rule requires.

△ (**Omission**). If the required records do not exist, ODHS cannot credibly claim the required safety process occurred. The Office should require production of the contemporaneous documentation for each safety assertion or a finding that it does not exist.

XI.H Protected Conduct Was Used as Substantive Evidence of Danger.

Rule. A parent's assertion of statutory and constitutional rights may not be used as evidence of danger or non-cooperation; *Weaver* (declining warrantless entry is a right, not evidence); the State bears the burden to prove a current threat.

Record. Each time Mother requested a legal basis, requested written communication, declined undefined voluntary home entry, challenged service and jurisdiction, sought custody modification, or reported misconduct, ODHS recharacterized the conduct as "non-engagement," "refusal," or danger, and used it to justify continued custody.

△ (**Misuse of Protected Conduct**). Converting the exercise of rights into evidence of unfitness inverts the State's burden and penalizes protected conduct.

XI.I Compelled Safety-Planning Is the Only Stated Condition for Return, and Requiring It Without Identifying Mother's Conduct Exceeds the Department's Authority.

Rule. ODHS may condition return only on specific, written behaviors or circumstances tied to an identified safety threat, and it must first identify particular conduct by the parent that justifies structuring the parent's care of the child. ORS §419B.150(4)–(5) (specific and articulable facts; particularity; least restrictive means); ORS §418.010 (no taking charge over a parent's objection absent statutory authority); *Weaver* (investigatory authority does not compel access). Conditioning the return of a child on a parent's consent to home access is compulsion, not consent: the social-worker exemption "is simply not the law," and *Wyman v. James* "does not hold that the social worker may enter the home despite the absence of consent or exigency." *Calabretta v. Floyd*, 189 F.3d 808, 813, 816 (9th Cir. 1999). A safety plan, moreover, is authorized only to manage an identified present-danger or impending-danger safety threat — a specific, current, observable danger. OAR 413-015-0425. And CPS responsibility ends when the assessment determines the child is safe. OAR 413-015-0125(2) (record-cited). A parent's fundamental liberty interest in the care, custody, and control of the child is protected by the Fourteenth Amendment and is not forfeited by the child's mental-health crisis or by removal from the other parent.⁴²

Record. ODHS has made continued "direct access" and safety-planning the condition for A.D.'s return. It has identified no statute, rule, court order, or fact-specific conduct by Mother that makes her participation in ODHS safety-planning a lawful prerequisite to custody. A.D.'s suicidal ideation and her removal from her father's home do not, without more, obligate Mother to safety-plan with the Department. When Mother asked ODHS to identify the danger and the authority, ODHS recharacterized her request as an unwillingness "to plan for her child" and as a failure to understand. The demand functions to secure Mother's after-the-fact consent to a safety plan so that a year of agency action — removal, continued custody, service demands, and access conditions — appears to have rested on lawful authority. But ORS §419B.150(5) required ODHS to state *with particularity* why custody was necessary and the least restrictive means; Mother has searched the submitted records and cannot locate any particularized statement of dangerous conduct by her, how that conduct was identified in the records submitted, or where the required particularity appears, because none is there. The Department's own CPS assessment by caseworker Emily Gonnuscio — a two-hour in-home interview of all of Mother's children — found no safety concerns in Mother's home; under OAR 413-015-0125(2), CPS responsibility ends when the assessment determines the child is safe. The Department's later position — that the juvenile court's jurisdiction *itself* authorizes a mandatory safety plan — is not the law: jurisdiction over the child does not supply the identified present-danger or impending-danger safety threat that a safety plan exists to manage, and ODHS has identified none as to Mother.

A general procedural rule the specific predicate. ODHS reads its manual's instruction that a caseworker "must assess the home before releasing a child" as authority to condition A.D.'s return to Mother on a home assessment and safety plan. That treats a general, procedural default as if it were substantive authority over a particular parent. It is not. The duty to assess before release presupposes the specific predicate the statute requires — an identified present- or impending-danger safety threat attributable to *this* parent (ORS §419B.150(4)–(5); OAR 413-015-0425) — and it ends when the child is assessed safe (OAR 413-015-0125(2)). A background check of the adults in Mother's household is one thing; compelled entry and inspection of a non-offending parent's home, absent any identified danger she poses, is another. If the general "assess before release" rule authorized what ODHS claims, then every non-offending parent would be automatically subject to mandatory assessment and safety-planning whenever the *other* parent's conduct triggered a case — collapsing the distinction between offending and non-offending parents and reading out of the statute the specific conditions precedent that alone trigger the court's and the agency's authority over a given parent. The Constitution forecloses exactly that: "[t]he government may not . . . interpose itself between a fit parent and her children simply because of the conduct — real or imagined — of the other parent." *Wallis v. Spencer*, 202 F.3d 1126, 1142 n.14 (9th Cir. 2000). A.D. was removed because her father was arrested for assaulting her; that fact cannot, without an identified danger attributable to Mother, make compelled assessment of Mother's home the price of her daughter's return.

△ (**Compelled Waiver; excess of authority**). Requiring safety-planning without identifying the parental conduct that authorizes it converts a generalized demand into the sole condition for return and penalizes Mother for asking ODHS to state its basis. ODHS may request cooperation; it may not treat a parent's insistence on a lawful, identified basis as evidence of danger or non-cooperation, nor recast the assertion of rights as a failure to understand. Identify the specific conduct, condition, or circumstance attributable to Mother that authorizes conditioning return on ODHS safety-planning; the record identifies none.

ODHS cannot use a condition for return to supply the predicate for the governmental intervention that the condition purports to justify. ODHS must first identify the legal and factual basis for its intervention and the specific safety threat it contends warrants continued state involvement. Only then may it impose conditions reasonably directed to addressing that established threat. Alternatively, even assuming ODHS possessed a lawful predicate for continued intervention, ODHS cannot establish the continued existence of a safety threat merely by treating a parent's refusal to permit a particular assessment as proof of the very danger ODHS claims it needs that assessment to determine. ODHS must identify the independent facts supporting the asserted threat and explain the connection between those facts and each condition imposed. Either ODHS reviewed its records and can point to the specific conduct, the record in which it was identified, and the particularized necessity finding — or it cannot. This complaint requests investigation into whether ODHS identified, documented, and consistently relied on a legally sufficient factual predicate at

⁴² *Troxel v. Granville*, 530 US 57, 65–66 (2000) (plurality).

physical discipline but that Al-Quan disregards this. She stated that Al-Mira does have an attitude and that she is not happy with how Al-Mira regards authority; but that Al-Quan does not try to find another way and that she does not support or endorse him hitting their nearly fully grown daughters. She expressed that in paying child support, she feels like she is paying to watch her daughters be abused when her children never came to harm in her care. She reported that Al-Quan has an "I have custody" attitude. She expressed feeling like it's in part her fault because she hasn't been able to take much action. She reported that she had been unable to challenge the custody agreement until she had one of her children back in her custody. AshLe' reported that her daughters have the abilities and capacities to determine which home they want to be in; but that Al-Quan views it as an insult to himself if the girls want to be with her and tells them that if they go to their mom they won't see him again. She stated that this is an absurd stance because it isn't a win-lose situation. AshLe' stated that Al-Quan needs to be held accountable to their court order as well as to what is acceptable to society.

In talking with the Dean of Students and the Principal at Poynter Middle School, they shared that they know this family well and described the family dynamic as very volatile and as a dysfunctional household that is crashing. It was reported that Al-Quan and AshLe' have a contentious, volatile relationship. The principal reported that recently they had an issue with Al-Mira asking to buy a vape from another student and then being found with one on her last week. The principal reported that he had reached out to Al-Quan, who is usually very receptive and will call him back if he misses the principal's call, but that he had never heard back from Al-Quan regarding that concern. The principal reported that Al-Mira claimed to have found the vape, though they believe they know which student she got it from, and he expressed concern that she is spiraling. He reported that on 3/21, Al-Mira had come to school and reported that her dad had hit her. They reported that Al-Mira has

Figure 2

each material stage. Its contradictory representations, made as custodian of the very records at issue, admit of only two explanations: a failure to review (per se negligence) or a knowing or reckless disregard for what the records show. "Interpretation" is not one of them.

XI.J A Finding of Danger Cannot Coexist With a Claimed Inability to Assess.

Rule. The State bears the burden to prove a current threat by specific and articulable facts. ORS §419B.150(1)(b); ORS §419B.100; *E.M.*, 264 Or App 76 (an absence of proof is not proof of danger). A present-danger determination must be immediate, significant, and clearly observable. OAR 413-015-0425.

Record. ODHS asserts both that Mother presents a danger requiring continued custody and that it "cannot assess" her. It offers "safety plan" as the danger and "cannot assess" as the reason it cannot identify one. At the same time, the Department's own permanency worker, Mursal Ali, confirmed that A.D.'s sibling is placed with Mother on a reunification plan and noted no current issues in Mother's home.

△ (**Internal Contradiction**). "Cannot assess" identifies an absence in the Department's knowledge, not a fact about Mother's parenting. ODHS cannot treat the information it says it lacks as proof of the danger it must identify. An asserted danger finding requires an identified evidentiary basis; a claimed inability to assess leaves ODHS obligated to identify what evidence independently supports the finding. The Department's contemporaneous placement of Mother's other child in her home, and finding the two children in Mother's care currently as being "safe", cannot be reconciled with a simultaneous claim that Mother's home cannot be assessed or presents a danger.

XI.K ODHS Treated Mother as Subject to the Same Safety Conditions as Father Without Identifying a Mother-Specific Safety Threat.

Rule. A condition imposed on Mother must rest on an identified, child-specific safety threat and on facts connecting that threat to conduct, a condition, or a circumstance attributable to Mother. A general procedure governing assessment of a placement or return does not itself establish that Mother created a safety threat or authorize a condition untethered to identified facts.

Record. The Department's stated safety concerns concern Father, not Mother. ODHS previously assessed A.D. while she was in Mother's care and found her "Safe," expressly recording that Mother was able to intervene when needed. ODHS later supported A.D.'s return to Father's care after the no-contact order was lifted. The child thereafter experienced the completed self-harm episode while in Father's home; Father was later arrested again for physical abuse. Yet ODHS has made Mother's participation in safety-planning and direct access to Mother's home the condition of return, without identifying a condition in Mother's home, conduct by Mother, or a specific serious loss or injury to A.D. that the demanded access would prevent.

△ (**Father-Based Concern Converted Into a Condition on Mother**). A worker's duty to assess a proposed placement does not create the factual predicate for coercive intervention against a different parent. ODHS may assess the circumstances that give rise to its stated concern and may request voluntary cooperation from Mother. But it may not convert Father's alleged conduct, the child's own mental-health history, or Mother's request for a stated legal basis into proof that Mother presents a current, nonspeculative threat of serious loss or injury. ODHS must identify the conduct or condition attributable to Mother, the specific threatened harm to A.D., and the nexus between them. The record identifies none.

XI.L The Caseworker Conceded That No Conduct of Mother's Is at Issue — Only That She Open Her Home.

Rule. A coerced condition of home access is not authority. "[G]overnment officials cannot coerce entry into people's houses without a search warrant" or an established exception, a principle "so well established that any reasonable officer would know it." *Calabretta*

v. *Floyd*, 189 F.3d 808, 813 (9th Cir. 1999). ODHS must instead identify the type, degree, and duration of the harm and a current, non-speculative risk. *Dept. of Human Services v. C.W.*, 305 Or App 75 (2020); *Weaver*.

Record. Caseworker David Milne told Mother, in substance, that no conduct of hers was being measured or was at issue, and that what ODHS needed was for Mother to open her home.⁴³ ODHS has identified no type, degree, or duration of any harm A.D. has suffered or is likely to suffer in Mother's care.

Δ (**Access Is Not Authority — Negligence or Reckless Disregard**). A demand to enter and inspect, untethered to any identified parental conduct or harm, is the coerced access *Calabretta* forbids and fails the current-threat showing *C.W.* requires. Milne's own concession — that no conduct of Mother's is at issue — establishes there is no predicate: ODHS either never reviewed for one (per se negligence) or knows there is none and conditions the child's return on access anyway (reckless disregard). Identify the conduct, the harm, and its type, degree, and duration, or concede there is none.

XI.M A Child-Safety Incident Occurred in the Department's Own Custody and Requires Immediate Independent Review.

Rule. OAR 413-080-0051 (contemporaneous documentation of conditions and protective action); the Department's paramount duty to the child's health and safety, ORS §419B.185(3)(c).

Record. During an encounter in which ODHS employee could not identify the danger said to prevent A.D.'s return — offering only "safety plan" and an invented "belt" example he admitted was not an allegation against Mother — A.D.'s arm was caught in the vehicle door and she was taken to the hospital for assessment.

Δ (**Continuing Injury**). ODHS cannot claim it is protecting A.D. from an unidentified danger in Mother's care while a child-safety incident occurs in its own custody. The incident requires preservation and independent review.

XI.N The Petition Fails to Allege Facts With the Specificity Required to Put Mother on Notice of the Charges Against Her.

Rule. A dependency petition must include "sufficient information to put the parties on notice of the issues in the proceeding." ORS §419B.809(4)(b). The allegations must set forth "the specific behavior that endangers the welfare of the child," "the specific conditions or circumstances that endanger the child," and "the facts describing . . . the parent's failure to provide care, guidance, or protection, and why that care, guidance, or protection is necessary for the child's physical, mental, or emotional well-being." A petition alleging only that a child made statements of abuse, without more, cannot withstand scrutiny. *Matter of Boyce*, 47 Or App 759, 764, 615 P2d 385 (1980). The allegations must be "sufficiently clear that a person of average intelligence would understand what is intended by them in order to prepare a defense." *State ex rel. Juv. Dep't v. Goebel*, 26 Or App 251, 254, 552 P2d 281 (1976).

Record. The petition against Mother alleged that she "does not understand the specific needs of this child and lacks skills necessary to safely parent"; that she "fails to recognize the safety threats presented by father . . . and is unwilling or unable to protect the child"; and that she is "involved in criminal activities which interfere with her ability to safely parent." These allegations do not identify: the specific skills Mother lacks; the specific needs of A.D. she allegedly does not understand; the specific conduct by Father she allegedly failed to recognize; the specific criminal activity and its nexus to parenting; or the specific harm to A.D. likely to result from any of the above. They are conclusions, not facts.

Δ (**Insufficient Pleading**). Where the State seeks to deprive a parent of her constitutionally protected custody, it must provide notice specific enough to permit preparation of a defense. Vague conclusions like "lacks skills" and "does not understand" do not identify the conduct, condition, or nexus the State must prove. The Office should determine whether the pleaded allegations satisfied ORS §419B.809(4)(b) and the due-process standards of *Goebel* and *Davis v. Tye*.

XI.O The Court Took Judicial Notice of Mother's Warrants Without Request and Without Affording Opportunity to Be Heard.

Rule. Due process requires notice and an opportunity to be heard before a tribunal relies on adverse facts to justify deprivation. ORS §419B.185(1); *State ex rel Juv. Dept. v. Smith*, 316 Or 646 (1993). Judicial notice is appropriate only for facts that are "not subject to reasonable dispute," ORS 174.120, and even then must not be used to supply a missing jurisdictional element or to prejudice a party without an opportunity to respond.

Record. At the October 31, 2025 jurisdictional hearing, Judge Rini took judicial notice of Mother's outstanding warrants without any party requesting such notice and without affording Mother—who was not present due to the Department's conceded service defect—any opportunity to explain, challenge, or contextualize the warrants. The warrants were not pleaded as a jurisdictional

⁴³David Milne, First Call (recording and transcript in Complainant's file).

allegation; the only testimony that referenced them **alleged they were in relation to possession of substances when, factually, they were related to a failure to appear.** The judge then relied on the warrants as part of the “complex web” justifying the default and, by implication, the jurisdictional findings.

△ **(Procedural Prejudice).** Using judicial notice to import unpleaded adverse facts into a default proceeding, where the affected parent has no opportunity to respond and where the facts are not universally indisputable (e.g., whether a warrant is valid, whether it relates to the parent’s current risk to the child), is a due-process defect. The Office should identify whether the Department’s attorneys participated in or acquiesced to this procedure and whether the warrants were later used as a substantive barrier to reunification.

XI.P ODHS Ignored a Mitigating Family Placement That Was Present, Available, and Certified Within Twenty-Four Hours.

Rule. ORS §419B.150(5) requires ODHS to set forth “with particularity” why custody is necessary and “the least restrictive means available” to protect the child. Protective custody is authorized only when no less restrictive alternative exists. ORS §419B.150(4). Under ORS §419B.185(3), the court must consider whether “the provision of reasonable services can prevent or eliminate the need to separate the family.” Federal law at 42 U.S.C. § 671(a)(15) similarly requires the agency to make “reasonable efforts” to prevent removal and to place the child in the “least restrictive” setting, which includes relative placement. When a fit relative is present at the scene of the emergency and willing to assume care, protective custody of the child from the non-offending parent is not the least restrictive means; it is the most restrictive means.

Record. At approximately 6:30–7:00 p.m. on September 6, 2025, maternal great-uncle Eric Taylor arrived at the hospital at Mother’s request. A second maternal great-uncle, William “Markus” Taylor, was also present. Mother had informed agency worker Nicole Bennett that she could not get time off work and was sending her uncles in her place. These relatives were not strangers to the agency; they were the same individuals ODHS certified as “Relative Resource Care” within roughly twenty-four hours, with the recorded rationale that “placement with a relative is the least intrusive option available.” The placement date on the report is 09/06/2025—the same night the maternal relatives were present at the hospital.

The Department’s Protective Custody Report records that Bennett “attempted to make plans to meet with and transport Ashle to her daughter,” confirming ODHS understood Mother was arranging care, not abandoning the child. Yet ODHS simultaneously certified Mother as “not open to engaging” while hiding from the court that Mother had positioned certified relative resources at the hospital to take A.D. into their care.

Caseworker Milne later told Mother that the “open assessment” regarding her son was the reason A.D. could not return, but at the time of removal the only asserted basis was Mother’s supposed “refusal” to plan—a refusal contradicted by the very relative placement ODHS approved within a day.

△ **(Failure to Use Least Restrictive Means; False “No Services” Representation).** ODHS represented to the shelter court that “reasonable efforts have been made to prevent or eliminate the need for removal” and that no less restrictive alternative existed. Its own records prove the opposite: a fit, willing relative was present at the hospital due to Mother’s coordination, and that relative was certified as placement the same night. If a relative was certifiable for foster placement within twenty-four hours, a relative was available as a family-plan support to prevent removal within hours. ODHS cannot maintain both positions: that no service could have prevented removal, and that it certified the very relative Mother provided as placement on the same date.

The Department’s failure to list this relative placement as a preventative service in its reasonable-efforts documentation is not an oversight; it is a material omission that falsifies the basis for removal. Under ORS §419B.171(3)(b), the agency must show that “no services would have eliminated the need for protective custody.” The presence of a willing, available, and subsequently certified relative resource—arranged by Mother before protective custody was executed—defeats that showing as a matter of law. The Department’s omission of this service from its shelter-hearing presentation, and its subsequent characterization of Mother as having “refused” to plan, is a misrepresentation of the least-restrictive-means analysis required by ORS §419B.150(5).

XII. Required Written Findings and Record-Specific Responses

GAO should issue a separate written response to each question below. For every response, GAO should identify: (1) the documents reviewed; (2) the ODHS employee, supervisor, attorney, contractor, or other person responsible for the underlying action or representation; (3) the factual finding; (4) the statute, rule, policy, or procedure applied; and (5) every correction, referral, preservation, or other action taken.

A response that a historically verifiable issue reflects a “difference of perspective” or “difference of interpretation” is not sufficient. For each disputed historical fact, GAO should determine what the contemporaneous records show and whether the challenged statement is accurate, inaccurate, unsupported, materially incomplete, or requires correction or qualification.

XII.A September 6, 2025 Emergency Protective Custody

1. What specific statutory protective-custody predicate did ODHS invoke on September 6, 2025?
2. Did ODHS rely on an asserted imminent threat of severe harm to A.D.; an asserted threat that A.D. posed severe harm to herself or others; or another statutory predicate?
3. What information was known when ODHS first informed Mother that A.D. could be released to her?
4. What new information caused the reported reversal approximately nineteen minutes later?
5. Who made, approved, or supervised the reversal decision?
6. What contemporaneous case note, assessment, recording, email, text, protective-custody form, or supervisory consultation documents the decision?
7. Did ODHS obtain or consider information concerning Mother's transportation, work obligations, proposed relative assistance, hospital discharge planning, or other less-restrictive alternatives?
8. If A.D.'s alleged self-harm statement was the emergency basis, why was that basis not clearly identified and consistently documented in the protective-custody and shelter-hearing materials?
9. Did ODHS evaluate whether the alleged self-harm statement was later qualified, denied, recanted, or otherwise contradicted? If so, identify the date, source, employee, and resulting action.

XII.B Shelter-Hearing Accuracy and Reasonable Efforts

1. What evidence supported the September 8, 2025 representation that no reasonable efforts had been made to prevent or eliminate removal?
2. Identify the basis ODHS permitted its representation on two separate occasions to assert to the court that reasonable efforts *had in fact* been made to prevent or eliminate the need for removal without correction?
3. What specific alternatives did ODHS consider before seeking out-of-home custody?
4. Provide the basis ODHS did not consider the maternal uncle available, willing, and approved or approvable to assist as a safety provider who could prevent the removal on September 6, 2025?
5. Why, then, if the Uncle was available did ODHS represent or conclude that no service, alternative placement, transportation assistance, discharge arrangement, or safety support could avoid protective custody?
6. Who personally spoke with Mother at or concerning the hospital?
7. What exact safety plan was proposed, when, and by what communication method the agency claims mother refused?
8. What exact words or conduct form the basis for any statement that Mother "refused to plan," "refused to cooperate," or "refused to pick up" A.D.?
9. Does the agency possess contemporaneous notes, texts, call logs, hospital communications, transportation records, or relative-placement records qualifying those descriptions?
10. Did ODHS disclose the reported transportation limitations, work conflict, request for assistance, and relative involvement when presenting the matter to the shelter court?

XII.C Mother's Service and Evaluation History

1. Identify every service, assessment, evaluation, class, visit, referral, provider contact, intake, attendance, completion, discontinuance, refusal, or access barrier related to Mother's allegations and that involve Mother.
2. What document supports any assertion that Mother completed or engaged in "no services"?
3. Did ODHS possess the October 30, 2021 neuropsychological evaluation before any statement that Mother had completed no neuropsychological evaluation or no services?
4. Did any ODHS employee compare the agency's quoted language from the evaluation with the original report before placing the excerpt in an assessment, report, or court-facing material?
5. Identify every deletion, addition, paraphrase, or alteration in the ODHS excerpt when compared to the original evaluation.
6. Who prepared, reviewed, approved, or repeated the excerpt?
7. What action will ODHS take if the quoted material omitted qualifying findings, added wording not in the original, or materially changed the evaluator's meaning?

XII.D Service, Notice, and Default-Related Record Integrity

1. What address or addresses for Mother were held in ODHS records between September and October 2025?
2. Which employee, office, attorney, vendor, or process server supplied the address used for attempted personal service?
3. Was the address accurate? If not, when was the error discovered?

4. What email addresses, telephone numbers, case-management contacts, benefits-system records, criminal-case records, court records, or other communication channels did ODHS possess?
5. Did ODHS or DOJ disclose active email communication and Mother's attempted filing in every diligent-efforts declaration or court-facing representation concerning service?
6. Why was personal service not reissued to the correct address after the original error?
7. Why was alternative service not requested, if ODHS believed ordinary personal service could not be completed?
8. Who prepared, reviewed, approved, or relied upon each diligent-efforts declaration, return of service, and representation that Mother could not be located or was evading service?
9. Did any person know facts inconsistent with the inability-to-locate narrative? If so, what corrective action was taken?
10. Identify each ODHS report, assessment, declaration, court filing, or other court-facing communication stating that Mother was "choosing to have no contact with the agency." For each statement, identify its author, date, reviewer, approver, source records consulted, and the factual basis for representing that Mother had no contact with ODHS despite the Department's substantial and recent communications with her.
11. State whether ODHS distinguishes between (a) actual absence of contact and (b) contact that occurs through email, telephone, the hospital, relatives, written communication, filings, or another method that ODHS does not prefer. If so, identify the written policy, rule, procedure, training material, or supervisory instruction authorizing that distinction.
12. State whether it is ODHS policy or practice to characterize a parent as having "no contact," "non-engagement," or "noncooperation" when the parent communicates with ODHS but declines in-person contact, home entry, unscheduled contact, verbal discussion, or another method of communication preferred by the Department. If the answer is yes, identify the authority, purpose, limits, and documentation requirements for that practice.
13. Explain why Mother's documented contacts with ODHS were not accurately reported as contact when the Department represented to the court that Mother was "choosing to have no contact with the agency."

XII.E Current Safety Plan and Conditions for Return

1. What specific current safety threat does ODHS attribute to Mother?
2. What specific act, omission, condition, or circumstance by Mother allegedly creates that threat?
3. What evidence supports it, including dates, sources, corroboration, and assessment outcome?
4. What specific serious harm to A.D. does ODHS predict?
5. How is that harm reasonably likely to occur in Mother's care?
6. What is the factual connection between the identified threat and each condition in the May 2026 CF1149?
7. Why does ODHS require scheduled and unscheduled access to Mother's home?
8. What legal authority and factual necessity does ODHS assert for that access?
9. What less-intrusive measures were considered, including scheduled assessment, neutral-site meetings, provider records, collateral verification, virtual contact, or a defined and time-limited home assessment?
10. What specific "reports of violence" does the CF1149 reference; who made them; what were the dates and facts; and what is the current status and disposition of the assessment?
11. What evidence connects any alleged violence, eviction issue, warrant, or housing concern to a present threat to A.D. in Mother's care?
12. Does ODHS distinguish between Father-specific violence and Mother-specific conditions? If so, identify the document and decision-maker who made that distinction.

XII.F Supervisor Review, Record Correction, and Non-Retaliation

1. After Mother provided records, transcripts, and sworn evidence identifying contradictions, what materials did each supervisor review?
2. Did each supervisor compare the disputed agency statements to the underlying record?
3. What did each supervisor conclude as to each claimed factual discrepancy?
4. If a supervisor characterized an issue as an "interpretation," identify the underlying fact and explain how it is interpretive rather than objectively verifiable.
5. Has ODHS instructed staff not to characterize Mother's requests for a legal basis, written communication, record correction, or defined limits on home entry as evidence of danger or noncooperation?
6. What preservation measures have been implemented for OR-Kids entries, case notes, emails, texts, recorded calls, service records, supervisory consultations, safety assessments, and court-facing submissions?

XIII. Required Agency Actions

The complaint requests the following actions. Each is administrative and within the Office's authority; none asks the Office to disturb a court order.

1. **Written findings.** Issue written findings on each claim in Parts III and IV, stating for each whether the identified representation was accurate and whether the employee complied with the cited statute, rule, and policy.
2. **Chain of responsibility.** For every declaration of diligent efforts, service effort, report, safety assessment, and court presentation at issue, identify each employee, supervisor, and attorney who prepared, reviewed, approved, submitted, adopted, or continued to rely on it, and state for each what the person knew and what the Department's own records showed.
3. **Evidence preservation (litigation hold).** Direct immediate preservation of all OR-Kids entries, case notes, the protective-custody form and safety-threat assessment, supervisor consultations between 5:40 p.m. and the shelter filing on September 6, 2025, the recantation record, and all material concerning the August 11 incident (medical/EMS, transportation, law-enforcement contact, and any recording).
4. **Loss reporting and evidence custody.** Under the State's self-insurance and agency-liability policies, report the suspected loss to DAS Risk Management and the Secretary of State Audits Division, take custody of and protect the evidence identified above, and consult ODHS of Justice before any action other than that immediately necessary to protect records and assets.
5. **Record correction and audit trail.** Identify the Department's record-correction procedure and custodian; correct or annotate every entry that rests on a disputed or unassessed assertion; associate Mother's rebuttal with each disputed item; and create an audit trail identifying the original entrant and the approver of the correction. The correction must include the child-welfare history specifically: produce the true report count and each disposition, remove the founded coding the Office has acknowledged was entered in error, segregate the unrelated case (Case ID 902821) and the Brawley-family entries, and reconcile the "Washington"/"Sanders" naming.
6. **Classification of the misrepresentations.** For each false representation identified in Parts III and IV — and in particular the "32 calls" history — state whether ODHS finds it a failure to consult its own records (negligence), an omission of material facts (tantamount to falsification), or a reckless or knowing disregard for the truth; and answer, yes or no, from the Department's own records: (i) did Mother complete services, and (ii) did Mother fail to plan for A.D.
7. **Founded-disposition notice audit and review.** For every assessment in which Mother was named as an alleged perpetrator, produce the disposition, date, and the OAR 413-015-0470 and CF 313 notices, or identify the documented exception and its authorizing supervisor or manager; and initiate local, Central Office, or Department-initiated review under OAR 413-010-0700 to 413-010-0750.
8. **Notice to recipients of the false record.** Identify and notify every court participant, provider, contractor, and attorney to whom ODHS represented the disputed material as reliable, and disclose the correction.
9. **Supervisory-conduct determination and referral.** Determine whether the supervisor's post-notice response complied with Policy 100-012 and the duty to investigate, preserve, or correct; and refer identified employee misconduct to ODHS Human Resources and to the DAS Chief Human Resources Office (CHRO) Investigations Unit (chro.investigations@das.oregon.gov) for investigation under the applicable CHRO labels — Failure to Meet Expectations (Dishonesty; Duty to Report; Falsified Documents/records; Manager — Higher standard), Maintaining a Professional Workplace (Dishonesty; Falsified Documents), Managing Improper Governmental Conduct (Abuse of Authority), Mismanagement, and Retaliation — and return a written finding of Sustained/Substantiated as to each.
10. **Attorney-conduct referral.** Refer to the Oregon State Bar the question whether counsel's presentation and non-disclosure of the recantation complied with the duty of candor to the tribunal, including the duty to disclose the prior Assistant Attorney General's on-record statement that Mother had completed her case plan.
11. **Civil-rights referral.** Refer for evaluation under 42 U.S.C. § 1983 whether the construction and post-notice maintenance of the false service-history record — including the supervisor's admitted consultation with the ODHS team and adoption of its conclusion after documentary notice — deprived Mother of protected rights.
12. **Non-retaliation directive.** Direct that Mother's assertion of rights not be recorded or used as evidence of danger or non-cooperation, and prohibit reliance on the challenged assertions pending correction review.
13. **Interim child-safety safeguards.** Pending independent review of the August 11 incident, direct that the involved employee have no unsupervised transportation or physical-management role, and provide a written explanation of every current placement and visitation restriction.
14. **Assignment of non-involved staff.** Assign a manager and worker with no prior involvement in the challenged conduct.

XIV. Misconduct Matrix (Summary)

The matrix summarizes Parts III and IV. "Δ" identifies the conduct as misrepresentation (M), fabrication (F), or omission (O). Exhibit references key to Part VIII.

#	Actor / conduct	Record proof (Exhibit)	Authority	Delta	Required action
<i>Part III — Employee dishonesty</i>					
1	Self-harm basis swapped for parent-danger theory	Marquand Tr. 00:05:42 (Ex. D); Child Safety Decision “Safe”; PC form (Ex. E, F)	ORS §419B.150(4); §419B.185	F/O	Produce assessment or find none
2	“Did not engage in any services” (later conceded)	Neuropsych eval; provider records; transcript (Ex. H, D)	OAR 413-015-0415; ORS §419B.100	M	Identify record; find none
3	“Refused” hospital pickup	Protective Custody Report (Ex. A)	OAR 413-015-0415	M	Find report contradicts “refused”
4	Coaching alleged before any contact	Timeline 2:30 vs. 5:00 p.m. (Ex. D, F)	OAR 413-015-0425; ORS §419B.150(1)(b)	F	Find temporally impossible
5	“32 calls... use abuse/substance by the mother”	CW History: 25–26 reports; founded name B. Washington/Brawley (Ex. I)	OAR 413-015-1010; 413-010-0715	M	Disposition accounting; classify
6	Substance-use “concern” while unassessed	Sworn admission (Ex. D)	ORS §419B.100; <i>E.M.</i>	F	Find no current-threat evidence
7	“Could not be located” / default	Diligent-efforts materials; email (Ex. J)	ORS §419B.168(1); due process	M	Find contradiction of own records
8	Statements falsely attributed to Marie Penn	Marie Penn affidavit (Ex. K)	ORS §419B.150(1)(b)	F	Find false attribution
9	“Little effort” at visitation	Placement-distance; contact-restriction records (Ex. O)	OAR 413-015-0415	M	Find contradiction
10	Supervisor adopted disputed record post-notice	Supervisor email; complainant notice (Ex. M)	Policy 100-012; supervisory duty	M/O	Find adoption; require referral
11	Replacement caseworker admitted no individualized danger	Recorded call Penn–Germany (Ex. P)	ORS §419B.150(1)(b); <i>Calabretta</i>	M	Reconcile with sworn testimony
12	Reliance on unpleaded grounds post-judgment	Transcript; Milne statements; petition (Ex. D, M)	ORS §419B.100; ORS §419B.200; <i>C.W.</i>	O/M	Identify pleaded allegation authorizing reliance
13	Disability accommodations ignored; barriers used as evidence	One Oregon records; Marquand testimony (Ex. Q)	42 U.S.C. §§12131–12165; 29 U.S.C. §794; ORS §419B.090(5); <i>C.H.</i>	M/O	Identify disposition of each accommodation
14	Prior unconditional placement contradicts current safety-plan demand	Recorded call Penn–Germany (Ex. P); prior case records (Ex. R)	ORS §419B.185(3); ORS §419B.150(5); 42 U.S.C. § 671(a)(15)	M/O	Produce April 2025 record; reconcile positions
15	Already adjudicated facts relitigated contrary to State’s prior judicial admission	Prior case transcript; AAG statement (Ex. R)	Due process; ORS §419B.090(4)	M	Find contradiction with prior case
<i>Part IV — Procedural violations</i>					
16	Custody on general authority / “direct access”	Case notes; correspondence (Ex. M)	ORS §418.010; §419B.150(4)–(5); <i>Weaver</i>	O	Identify authority & predicate
17	Shelter court not told basis / recantation	Hearing record; recantation (Ex. D, G)	ORS §419B.185(1),(3),(4)	O	Find record incomplete
18	Founded-disposition notice not sent; used as history	GAO prior acknowledgment (Ex. L)	OAR 413-015-0470(1)(c); 413-010-0715	O	Initiate review; correct record
19	Service/default on false predicate	Diligent-efforts materials (Ex. J)	ORS §419B.168(1); ORS §419B.823; ORS §419B.833; due process; <i>C.M.R.</i>	O	Find procedural default
20	Safety assertions undocumented	OR-Kids record (or absence) (Ex. B, C)	OAR 413-080-0051	O	Require documentation or find absent
21	Protected conduct used as evidence	Retaliation chronology (Ex. M)	<i>Weaver</i> ; burden allocation	M	Non-retaliation directive
22	Safety-planning demanded as sole condition for return, no conduct identified	Correspondence; “direct access” demand (Ex. M)	ORS §418.010; §419B.150(4)–(5); <i>Weaver</i> ; <i>Troxel</i>	O	Require identified conduct or find none

#	Actor / conduct	Record proof (Exhibit)	Authority	Delta	Required action
23	Danger asserted while claiming inability to assess	Reports; “cannot assess” statements (Ex. B, C, M)	ORS §419B.150(1)(b); <i>E.M.</i>	O	Find contradiction; Determine whether the asserted basis is accurate, adequately documented, and policy-compliant; if not, direct that it not be repeated or relied upon without correction or a stated evidentiary basis
24	Aug. 11 vehicle-door injury in custody	Medical/EMS; incident record (Ex. N)	OAR 413-080-0051; §419B.185(3)(c)	—	Preserve; independent review
25	History commingles unrelated case (902821) / Brawley; “Washington”/“Sanders”	CW History (Ex. I)	OAR 413-080-0051	O	Segregate; reconcile naming
26	Petition failed to allege specific facts sufficient to prepare a defense	Petition (Ex. E)	ORS §419B.809(4)(b); <i>Goebel</i> ; <i>Davis v. Tyee</i>	O	Find insufficient pleading
27	Judicial notice of warrants without request or opportunity to be heard	Transcript 00:14:56–00:15:11 (Ex. D)	ORS 174.120; due process; <i>Smith</i>	O	Find procedural prejudice
28	Available relative placement omitted from reasonable efforts	Protective Custody Report pp. 4–5; relative certification (Ex. A, S)	ORS §419B.150(5); ORS §419B.171; ORS §419B.185(3); 42 U.S.C. § 671(a)(15)	O	Find least-restrictive-means failure; correct record

XV. Exhibit Index

Exhibit letters key to the matrix. Source files are held by Complainant and available on request.

Ex.	Description (source)
A	Protective Custody Report, ODHS (transportation; bus; relative-placement arrangement).
B	ODHS Fact Findings Report dated September 8, 2025.
C	ODHS Report dated September 17, 2025.
D	Hearing record / testimony excerpts (“engaged in those assessments”; substance-use admission; coaching-concern timing).
E	Protective-custody form showing the unchecked self-harm option.
F	Records of the 5:40 p.m. release decision and 5:59 p.m. reversal, September 6, 2025.
G	Recantation record and communications concerning it.
H	Neuropsychological evaluation; parenting-education, domestic-violence-service, and provider records; releases.
I	Child Welfare History — CW_History_Total (Complainant’s tabulation) and ODHS Fact Findings Report dated Sept. 8, 2025 (CW History) — showing report count, dispositions, and founded perpetrators.
J	Diligent-efforts materials; email correspondence to which Mother responded; transposed-address record.
K	Affidavit of Marie Penn (embedded, Part III.G).
L	Governor’s Advocacy Office prior acknowledgment that a founded-disposition notice was not sent.
M	Supervisor’s email response; Complainant’s notice of contradictions; retaliation chronology.
N	August 11 incident materials (medical/EMS; transportation; witness; law-enforcement contact).
O	ODHS Child Safety Decision (embedded, Part III.A); placement-distance map.
P	Recorded call, Ashle Penn and Fyndi Germany (transcript and audio).
Q	One Oregon reasonable-accommodations record (anxiety; depression; hypervigilance; written communication; consistent staff).
R	Prior dependency case records, Case No. 20JU00765 (AAG statement of case-plan completion; placement records).

Ex.	Description (source)
S	Maternal great-uncle relative-placement certification and hospital presence records (09/06/2025).

XV. Appendix A — Verified Authorities

- ORS §418.010 — Children not to be taken charge of when parents object (record-cited; confirm against ORS §418.010).
- [ORS §419B.100](#) — Jurisdiction; bases.
- [ORS §419B.150](#) — When protective custody authorized.
- [ORS §419B.168](#) — Procedure when child is not released.
- [ORS §419B.185](#) — Evidentiary (shelter) hearing.
- ORS §419B.809(4)(b) — Petition must include sufficient information to put parties on notice.
- ORS §419B.823 — Service reasonably calculated to apprise person served.
- ORS §419B.833 — Specifications for proofs of service.
- [OAR 413-015-0415](#) — CPS Assessment Activities (record review) (rule confirmed; subsection language record-cited).
- [OAR 413-015-0425](#) — Present Danger / Impending Danger Safety Threat.
- [OAR 413-015-1010](#) — Standard of Proof and Possible CPS Assessment Dispositions; see [413-015-1005](#).
- [OAR 413-015-0470](#) — Notifications at Conclusion of CPS Assessment.
- [OAR 413-010-0715](#) — Notice of a CPS Founded Disposition (CF 313); review pathway OAR 413-010-0700 to 413-010-0750.
- OAR 413-080-0051 — Documentation of behaviors, conditions, or circumstances (record-cited; confirm subsection).
- *State ex rel Juv. Dept. v. Smith*, 316 Or 646, 853 P2d 282 (1993) — current threat; reasonable likelihood of harm.
- *Dept. of Human Services v. E.M.*, 264 Or App 76, 331 P3d 1054 (2014) — current risk required.
- *Dept. of Human Services v. C.W.*, 305 Or App 75, 468 P3d 1024 (2020) — risk of harm must be current.
- *Dept. of Human Services v. J.R.F.*, 351 Or 570, 273 P3d 87 (2012) — due-process rights always implicated in ORS chapter 419B.
- *Dept. of Human Services v. D.J.*, 259 Or App 638, 314 P3d 998 (2013) — fundamental fairness requires meaningful participation.
- *Dept. of Human Services v. C.M.R.*, 281 Or App 886, 383 P3d 985 (2016) (per curiam) — reversal for deficient service.
- *Dept. of Human Services v. K.L.*, 272 Or App 216, 355 P3d 926 (2015) — service methods need not be exclusive if they satisfy due process.
- *State ex rel. Juv. Dep't v. Goebel*, 26 Or App 251, 552 P2d 281 (1976) — petition must be clear enough for defense preparation.
- *Davis v. Tyee Indus., Inc.*, 295 Or 467, 668 P2d 1186 (1983) — pleading requires fairly specific description of facts.
- *Matter of Boyce*, 47 Or App 759, 615 P2d 385 (1980) — petition alleging only child statements insufficient.
- *Matter of Rise*, 54 Or App 725, 635 P2d 1369 (1981) — insufficient basis where only statements alleged.
- *State ex rel. Juv. Dep't v. G.L.*, 220 Or App 216, 185 P3d 483 (2008) — service must bear rational relationship to jurisdictional bases.
- [State v. Weaver](#), 214 Or App 633, 168 P3d 273 (2007) — investigatory authority does not permit warrantless entry.
- [Troxel v. Granville](#), 530 US 57, 65–66 (2000) — fundamental parental liberty interest in the care, custody, and control of the child (Fourteenth Amendment).
- *Santosky v. Kramer*, 455 US 745, 746 (1982) — parental rights do not evaporate because of imperfect parenting or temporary state custody.
- ODHS | OHA Policy 100-012 — employee compliance and progressive discipline (record-cited).

Note on unverified items: Items marked “record-cited” rest on language quoted in Complainant’s file and should be confirmed against the primary source before filing. No authority has been fabricated; where certainty was not established, the item is flagged rather than asserted.

Respectfully,

/s/ 

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